

ELIZABETH II



1970 CHAPTER lxxvii

An Act to confer further powers on the Monmouthshire County Council and on local, highway and other authorities in the administrative county of Monmouth in relation to lands, amenities, highways and the local government, improvement, health and finances of the county and of the boroughs and districts therein; and for other purposes. [17th December 1970]

WHEREAS—

(1) It is expedient that further and better provision should be made with reference to lands, amenities, industrial development and highways and for the local government, improvement, protection from fire, health and welfare and finances of the administrative county of Monmouth, and that the powers of the county council of that administrative county and of the local and other authorities therein should be enlarged and extended as by this Act provided:

(2) It is expedient that the other provisions in this Act should be enacted:

(3) The purposes of this Act cannot be effected without the authority of Parliament:

1933 c. 51. (4) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

Short title. 1.—(1) This Act may be cited as the Monmouthshire County Council Act 1970.

1956 c. xxxi. (2) The Monmouthshire County Council Act 1956 and this Act may be cited as the Monmouthshire County Council Acts 1956 and 1970.

Division of Act into Parts. 2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Lands and industrial development.

Part III.—Planning and amenities.

Part IV.—Highways.

Part V.—Fire protection and public safety.

Part VI.—Public health and welfare.

Part VII.—Finance.

Part VIII.—Superannuation.

Part IX.—Miscellaneous.

Part X.—General.

Interpretation. 3.—(1) In this Act, unless otherwise expressly enacted or the subject or context otherwise requires, words and expressions to which meanings are assigned by sections 90 and 110 of the Act of 1936 and sections 294 and 295 of the Act of 1959 have the same respective meanings.

(2) In this Act, unless otherwise expressly enacted or the subject or context otherwise requires, the following expressions have the meanings hereby respectively assigned to them:—

- “ the Act of 1933 ” means the Local Government Act 1933; 1933 c. 51.
- “ the Act of 1936 ” means the Public Health Act 1936; 1936 c. 49.
- “ the Act of 1937 ” means the Local Government Super-annuation Act 1937; 1937 c. 68.
- “ the Act of 1956 ” means the Monmouthshire County Council Act 1956; 1956 c. xxxi.
- “ the Act of 1957 ” means the Housing Act 1957; 1957 c. 56.
- “ the Act of 1959 ” means the Highways Act 1959; 1959 c. 25.
- “ the Act of 1967 ” means the Road Traffic Regulation Act 1967; 1967 c. 76.
- “ appointed day ” has the meaning assigned to that expression by section 4 (The appointed day) of this Act;
- “ caravan ” has the same meaning as in Part I of the Caravan Sites and Control of Development Act 1960; 1960 c. 62.
- “ the clerk ” means the clerk of the Council;
- “ contravention ” includes failure to comply, and
“ contravene ” shall be construed accordingly;
- “ the Council ” means the county council of the county;
- “ the county ” means the administrative county of Monmouth;
- “ daily fine ” means a fine for each day on which an offence is continued after conviction thereof;
- “ district ” means a borough or an urban or rural district in the county;
- “ enactment ” includes an enactment in this Act or in any general or local Act and any order, byelaw, scheme or regulation for the time being in force within the county;
- “ highway authority ” means—

(a) in the case of a trunk road, the Secretary of State or, with his consent, the authority who are for the time being acting as his agent under the Act of 1959 with respect to that road;

(b) in the case of a county road in the county, except a claimed county road, and in the case of any other highway for the time being maintained by the Council, the Council; and

(c) in the case of any other highway, the local authority for the district in which the highway is situate;

PART I
—cont.

- 1960 c. 18. “house” means a dwelling-house, whether a private dwelling-house or not, and includes any building or part of a building which is occupied or intended to be occupied as a separate dwelling;
- “industrial building” has the same meaning as in the Local Employment Act 1960;
- “land” includes land covered by water and any interest in land or any easement or right in, to or over land;
- “local authority” means the council of a district;
- “officer” includes servant;
- 1969 c. 48. “operational land” in the case of the Post Office has the same meaning as in paragraph 93 (4) of Schedule 4 to the Post Office Act 1969 and in the case of any other statutory undertakers has the same meaning as in the Town and Country Planning Act 1962 as originally enacted;
- 1962 c. 38. “parish council” means the parish council of a rural parish in the county or, where there is no parish council, the parish meeting of such parish;
- “public utility undertakers” and “statutory undertakers” include the Post Office;
- “the superannuation fund” means the superannuation fund maintained by the Council under Part I of the Act of 1937;
- “tribunal” means the Lands Tribunal;
- “verge” includes any lands situated between two carriageways and any part of a street which is not a carriageway, footway or cycle track.

(3) For the avoidance of doubt it is hereby declared that, unless the subject or context otherwise requires, references in this Act to the Council include reference to the Council acting for, or in respect of, the Gwent Police Authority as a committee of the Council.

(4) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by, or by virtue of, any subsequent enactment, including this Act.

The appointed day.

4.—(1) In this Act “the appointed day” means such day as may be fixed by resolution of a local authority subject to and in accordance with the provisions of this section.

(2) Different days may be fixed under this section for the purpose of different provisions of this Act.

(3) The local authority shall cause to be published in a local newspaper circulating in the district notice—

- (a) of the passing of any such resolution and of the day fixed thereby; and
- (b) of the general effect of the provisions of this Act coming into operation as from that day;

and the day so fixed shall not be earlier than the expiration of one month from the date of the publication of the said notice.

(4) Either—

- (a) a copy of any such newspaper containing any such notice; or
- (b) a photostatic or other reproduction certified by the clerk of the local authority to be a true reproduction of a page, or part of a page, of any such newspaper bearing the date of its publication and containing any such notice;

shall be evidence of the publication of the notice and of the date of the publication.

(5) Where any provision of this Act coming into operation on a day fixed by resolution under this section requires the licensing or registration of a person carrying on any business, or of premises used for any purpose, it shall be lawful for any person who—

- (a) immediately before that day was carrying on that business, or using any premises for that purpose; and
- (b) had before that day duly applied for the licence or registration required by that provision;

to continue to carry on that business, or to use those premises for that purpose, until he is informed of the decision with regard to his application, and, if the decision is adverse, during such further time as is provided under section 220 (Appeals) of the Act of 1956 as applied by section 115 (Application of provisions of Act of 1956) of this Act.

PART II

LANDS AND INDUSTRIAL DEVELOPMENT

5.—(1) The Council may purchase by agreement land in the county for the purpose of facilitating the provision of premises for occupation by any undertaking carried on or to be carried on there or for otherwise meeting the requirements of such undertaking, including the requirements arising from the needs of persons employed or to be employed therein.

Acquisition
of land for
development.

(2) Nothing in this section shall prejudice or affect the provisions of section 28 of the Town and Country Planning Act 1968 with 1968 c. 72.

PART II
—cont.

respect to the compulsory acquisition of land for any of the purposes referred to in subsection (1) of this section.

(3) In this section “undertaking” means any trade or business, or any other activity providing employment.

Disposal and
development
of land.

1963 c. 29.

6. In relation to land acquired by the Council for the benefit or improvement of the county under section 157 or section 158 of the Act of 1933 (which authorise the acquisition of land by agreement), as extended by section 1 of the Local Authorities (Land) Act 1963, and not appropriated by them for the purpose of any of their functions under any enactment, section 165 of the Act of 1933 (which authorises the sale or exchange of land) shall have effect as if in paragraph (a) thereof the words “and which is not required for the purpose for which it was acquired or is being used” were omitted.

Power as to
re-housing.

7.—(1) The Council may enter into, and carry into effect, agreements with any local authority for the provision by that authority of houses for the purpose of providing for the re-housing of persons displaced from any land acquired by the Council under any enactment, and any such agreement may provide for the making of contributions by the Council towards the whole or any part of the expense thereby incurred by the local authority.

(2) In this section “local authority” means the council of any administrative county, county borough or county district.

Provision of
substituted
sites.

8. The power of the Council to purchase land by agreement shall include power to purchase land by agreement for the purpose of providing substituted sites or facilities for the owners, lessees and occupiers of land which may be acquired under any enactment.

Suspension of
restrictive
covenants.

9.—(1) If the Council—

- (a) acquire land by agreement; or
- (b) enter into an agreement to acquire land; or
- (c) have acquired land by agreement before the passing of this Act; or
- (d) appropriate (whether before or after the passing of this Act) land which has been previously acquired by agreement;

for a purpose for which they are for the time being authorised to acquire land compulsorily, or could under any enactment be authorised to acquire the land compulsorily, and the land is, before such acquisition or agreement to acquire, affected by any restriction arising under covenant as to the user thereof or the building thereon, the Council may, subject to the provisions of this section, by resolution suspend the operation of such restriction.

(2) The resolution shall describe by reference to a map the land to which it applies.

(3) The Council shall—

PART II
—cont.

(a) in three successive weeks publish in one or more local newspapers circulating in the locality in which the land referred to in the resolution is situated a notice stating that the resolution has been passed, describing the land and naming a place within the locality where a copy of the resolution and map may be inspected and specifying the period (not being less than three months from the first publication of the notice) within which, and the manner in which, objections to the suspension of the restriction can be made;

(b) on or before the date of the first publication of the said notice serve by registered post or the recorded delivery service a copy of the said notice on every person who appears to them, after diligent inquiry, to be entitled to the benefit of the restriction to which the resolution relates; and

(c) on or before the date of the first publication of the said notice post a copy or copies of the said notice in a prominent position on the land to which the resolution relates.

(4) Any person claiming to be entitled to the benefit of the restriction may object to the suspension of the restriction by sending notice of his objection, and of the grounds thereof, to the appropriate Minister within the period specified in the notice and by sending a copy thereof to the Council.

(5) If any objection is duly made as aforesaid and is not withdrawn, the resolution shall be of no effect unless and until it is confirmed by the appropriate Minister, and before confirming the resolution the appropriate Minister shall cause a public local inquiry to be held into the proposed suspension of the restriction and, after considering the report of the person who held the inquiry, may confirm the resolution.

(6) (a) If no objection is duly made under subsection (4) of this section, or if all objections so made are withdrawn, the restriction shall be suspended on and after the date of the expiration of the period specified in the notice, or the date of the withdrawal of the objection, or (if more than one) the last objection, or the date on which the Council acquire or appropriate the land, whichever is the later.

(b) If objection is duly made as aforesaid and the appropriate Minister confirms the resolution, the restriction shall be suspended on and after such date as the appropriate Minister shall determine, not being earlier than the date on which the Council acquire or appropriate the land, whichever is the later.

(7) The Council shall pay compensation in accordance with the provisions of section 10 of the Compulsory Purchase Act 1965 1965 c. 56.

PART II
—cont.

1961 c. 33.

in respect of any entitlement to the benefit of a restriction suspended under the powers of this section and loss suffered in consequence thereof, and the amount of the compensation shall, in case of dispute, be determined in accordance with the Land Compensation Act 1961.

(8) Any restriction suspended under the powers of this section shall be unenforceable so long as the Council are the owners of the land to which the restriction relates, or, if the Council convey the land to any body for any of the purposes of the Education Acts 1944 to 1968, so long as the land is used by that body for the purposes of those Acts, and, if compensation is paid by the Council under subsection (7) of this section in respect of the suspension of a restriction relating to the building upon, or use of, land, that restriction shall remain unenforceable in respect of such building or use notwithstanding any subsequent conveyance or disposition of the land to any other person:

Provided that if such compensation is paid on the basis that land may be used for a particular purpose, the restriction shall, after any subsequent conveyance or disposition of the land to a person otherwise than for any of the purposes of the Education Acts 1944 to 1968, remain unenforceable only so long as the land is used for that purpose.

(9) If the Council dispose of any land to which the restriction suspended under the powers of this section relates, they shall, in two successive weeks, publish notice thereof in one or more local newspapers circulating in the locality in which the land is situated.

(10) Nothing in this section shall apply to—

- (a) any restriction arising under a covenant granted to the National Trust for Places of Historic Interest or Natural Beauty restricting the development or use of land;
- (b) any restriction imposed by covenant or otherwise restricting the development or use of land or imposing on the owner thereof any obligation or duty contained in any deed, wayleave agreement or other instrument and imposed by, or enuring for the benefit of, the National Coal Board for the purpose of safety;
- (c) any restriction arising under a covenant granted to a river authority for the protection of, or for securing access to, or preventing interference with the use of, land used in the performance of their statutory functions or their apparatus;
- (d) any restriction for—
 - (i) the protection of, or for securing access to, or preventing interference with the use of, operational land or apparatus of any public utility undertakers or local authority, or the British Railways Board; or

(ii) the prevention of pollution of water which any water undertakers are for the time being authorised to take;

contained in any deed, wayleave agreement or other instrument.

PART II
—cont.

(11) In this section “the appropriate Minister” means the Minister of the Crown having power to authorise the compulsory purchase of the land for the purpose for which the Council have acquired or agreed to acquire that land.

10.—(1) The Council, by means of an order made by the Council and submitted to, and confirmed by, the confirming authority, may be authorised to create in favour of the Council, in, over or under any land which under any enactment the Council may be authorised to acquire compulsorily, any easement or other right in, over or under, or in relation to, such land which, in the opinion of the confirming authority, is essential to the full enjoyment or use of any land or building owned or occupied, or intended to be acquired or occupied, by the Council for the purposes of any of their undertakings, powers or duties. Compulsory acquisition of easements.

(2) The confirming authority shall not confirm any order under this section unless the confirming authority determine that the easement or right can be created without material detriment to the land in, over or under, or in relation to, which it is proposed to be created or, in the case of a park or garden belonging to a house, without seriously affecting the amenity or convenience of the house.

(3) The Acquisition of Land (Authorisation Procedure) Act 1946 shall apply as if this section were an enactment in a public general Act and in force immediately before the commencement of the said Act of 1946 and as if— 1946 c. 49.

(a) the expression “compulsory purchase of land” in the said Act of 1946 included the creation of such easement or right as is mentioned in subsection (1) of this section; and

(b) paragraphs 9 and 10 of Schedule 1 to the said Act of 1946 applied to the creation of such easement or right as is mentioned in the said subsection (1), whether it is created in, over or under any land to which either of those paragraphs relates or in, over or under any other land in which the person entitled to the benefit of either of those paragraphs has an easement or other right, being an easement or other right which, if it were land, would be land to which the paragraph relates.

(4) No such easement or right as is mentioned in subsection (1) of this section shall be deemed part of a house, building or manufactory or of a park or garden belonging to a house within section 8 of the Compulsory Purchase Act 1965.

1965 c. 56.

PART II
—cont.

(5) In this section “ confirming authority ” means the authority having power to authorise the compulsory purchase of the land for the enjoyment or use of which the easement or other right is required or which would have had such power if such land were not already owned by the Council.

(6) Section 287 of the Act of 1936 shall have effect as if reference therein to that Act included a reference to this section.

Agreements
with
developers.

11.—(1) The Council and any person having an estate or interest in any land within the county may enter into an agreement which may provide for all or any of the following matters:—

- (a) determining the order in which the development of the land shall be carried out as between the different parts of the land and as between the different parts of the development of any part of the land;
- (b) determining the time by which development of the land shall be completed or the times by which the parts of the development shall be completed;
- (c) providing that the estate or interest of that person in the land shall not be conveyed, leased or assigned except by way of mortgage or legal charge to any person unless the Council shall have first satisfied themselves that that last-mentioned person has, or can command, sufficient financial resources to carry out development of the land and to implement all the provisions of the agreement;
- (d) the dedication to the public of rights of way over the land or over a part or parts of any building or structure which is comprised in the development and the lighting, maintenance and cleansing of the public rights of way so dedicated, including the maintenance and cleansing of the surface and the lighting of the building or structure over or above the public rights of way so dedicated and the provision and maintenance of any support for the public rights of way so dedicated;
- (e) making arrangements relating to the provision, maintenance or use of facilities for the parking of vehicles for, or in connection with, development of the land;
- (f) making arrangements for the maintenance of open spaces provided in connection with development of the land;
- (g) any other related or consequential matters.

(2) (a) An agreement entered into under this section may contain positive and negative covenants and such covenants, whether positive or negative and notwithstanding that they may not enure, and may not be expressed to enure, for the benefit of any other land of the covenantee, shall, if registered in the local land charges register, be enforceable by the Council against the covenantor and all persons deriving title by, through or under the covenantor.

(b) If the person who has entered into an agreement under this section or any person deriving title by, through or under him fails to perform any of the positive covenants contained in the agreement, the Council may, after giving not less than twenty-one days' notice of their intention to do so, enter on the land and do the work in default, and the expenses incurred by the Council in so doing shall be recoverable by them from the person in default.

(c) Except as may be expressly provided in the agreement, an agreement entered into under this section shall be enforceable and be deemed to be intended to be enforceable in perpetuity or for the duration of the estate or interest which the person entering into the agreement has in the land at the time when the agreement is entered into.

(3) The Council may take or acquire shares or other securities in any company incorporated in the United Kingdom with which an agreement is entered into under this section.

(4) In this section "development" has the same meaning as in section 12 of the Town and Country Planning Act 1962. 1962 c. 38.

(5) Sections 287 and 291 of the Act of 1936 shall have effect as if reference therein to that Act included a reference to this section.

12. The Council may, if requested so to do by any person—
- (a) who is the owner or intended owner or lessee of any land in the county; or
 - (b) who has purchased or intends to purchase or take on lease from the Council any land (whether within or outside the county);

Power to Council to assist industry.

being in either case land upon which an industrial building is built or is intended to be built, extended or improved, carry out any work required in relation to the preparation or improvement of the site for that building or for the provision or improvement of services or facilities on which any trade or business carried on or intended to be carried on in such building depends, and may make grants or loans towards the cost of such works or of the provision or improvement of such services or facilities or both:

Provided that nothing in this section shall authorise the Council to carry out works outside the curtilage of the building or proposed building for the provision or improvement of services which it is the function of public utility undertakers to provide or improve.

13. The Council may enter into and carry into effect agreements or arrangements with any public utility undertakers for the provision and maintenance by such undertakers of any works, facilities, supplies or services which may be necessary or desirable for any of the purposes specified in subsection (1) of section 5

Agreements with public utility undertakers for provision of works.

PART II
—cont.

(Acquisition of land for development) of this Act, or for the purpose of the use of any land after it has been developed for any of those purposes.

Power to Council to guarantee rents, etc., of industrial buildings.

14. The Council may, if requested to do so by any person who is the owner or intended owner, or lessee or intended lessee, of any industrial building, or any part of an industrial building, or of land on which it is proposed that any industrial building should be erected, guarantee or contract to secure the payment of—

- (1) any rent or other sum payable in respect of the building or part thereof;
- (2) any sums payable to any public utility undertakers in respect of the provision or maintenance of any works, facilities, supplies or services for the purposes of any trade or business carried on, or to be carried on, in the building.

Application to local authorities of provisions of Part II.

15.—(1) The provisions of this Part of this Act, except section 7 (Power as to re-housing), shall apply to a local authority and, for that purpose, shall have effect as if, for references therein to the Council and to the county, there were substituted references to the local authority and to their district, and subject to any other necessary modifications.

(2) In its application to a local authority section 9 (Suspension of restrictive covenants) of this Act shall have effect as if in subsection (10) (d) (i) thereof the reference to a local authority included reference to the Council.

PART III

PLANNING AND AMENITIES

Parking of heavy commercial vehicles.

16.—(1) (a) If, after the appointed day in any district, representation is made in manner hereinafter mentioned to the local authority that the amenities of any part of the district are prejudicially affected by the use during the prescribed hours of any land within the curtilage of any private dwelling-house in a street in the district as a parking place for one or more heavy commercial vehicles, the local authority may make an order in accordance with the provisions of this section prohibiting the use during the prescribed hours of land within the curtilage of the private dwelling-houses in the street, or any part thereof, to which the representation relates as a parking place for one or more heavy commercial vehicles.

(b) A representation under the foregoing paragraph shall be made in writing and signed by not less than five local government

electors residing in private dwelling-houses in the street concerned or in private dwelling-houses in any other street which are within 100 yards of the land in question.

(2) (a) If the local authority propose to make an order under this section, they shall publish notice of their proposal in a local newspaper circulating in the district stating where the draft order can be inspected and copies purchased and that objections to the order may be made in writing within one month after the date of the first publication of the notice.

(b) Before determining to make the order the local authority shall consider all objections so made and shall afford to the owner or occupier of every dwelling-house abutting or fronting on the street, or the part thereof, to which the draft order relates, being a person who has made objection, an opportunity of being heard by a committee of the local authority.

(3) (a) Any order made under this section shall specify the street, or the part thereof, to which it applies.

(b) Any such order shall come into operation at the expiration of the period of one month after the first publication in pursuance of subsection (4) of this section of the notice of the making of the order or, if an appeal is lodged, when the appeal is disposed of or withdrawn or fails for want of prosecution, and shall have effect for such period, not exceeding five years, as the local authority may determine.

(4) When an order has been made by the local authority under this section they shall give notice thereof, and of the right of appeal, by publication in a local newspaper circulating in the district, and any person affected by the order and the owner or occupier of a dwelling-house in the district who is aggrieved by the order may appeal to a magistrates' court:

Provided that, in its application to an appeal under this section, section 300 of the Act of 1936 shall have effect as if the time within which such an appeal may be brought were one month after the first publication in pursuance of this subsection of the notice of the order to which the appeal relates.

(5) Nothing in any order made under this section shall apply so as to prevent a heavy commercial vehicle waiting during the prescribed hours on any land within the curtilage of any private house in a street to which the order relates for any period not exceeding one hour.

(6) The occupier of the land within the curtilage of a private dwelling-house or any part thereof who permits the same to be used in contravention of an order under this section and any

PART III
—cont.

person who parks a heavy commercial vehicle in contravention thereof shall be liable to a fine not exceeding £50 and to a daily fine not exceeding £5.

(7) For the purposes of this section a vehicle having an unladen weight exceeding 30 hundredweight in which is installed freezing equipment designed or used for the manufacture of ice-cream or any similar commodity and which, but for the installation of that equipment, would have an unladen weight of 30 hundredweight or less shall be deemed not to be a heavy commercial vehicle, but the exemption afforded to such a vehicle by this subsection shall only have effect—

- (a) if and so long as the equipment is not in operation; or
- (b) if the equipment is in operation, if and so long as it is so operated as not to cause a nuisance by reason of the noise of the equipment in operation or the smell emanating from it.

(8) In this section—

“prescribed hours” means the hours between 9 o’clock in the evening and 8 o’clock in the following morning;

“private dwelling-house” means a dwelling-house of which no part is used for the purposes of any trade or business and includes a block of flats no part of which is used for the purposes of any trade or business;

“heavy commercial vehicle” means any vehicle (not being a dual-purpose vehicle), whether mechanically propelled or not, constructed or adapted for the carriage of goods and having an unladen weight exceeding 30 hundredweight;

“dual-purpose vehicle” means a vehicle constructed or adapted for the carriage both of passengers and of goods or burden of any description being a vehicle of which the unladen weight does not exceed 2 tons and which either—

(a) satisfies the conditions as to construction specified in subsection (9) of this section; or

(b) is so constructed or adapted that the driving power of the engine is, or by the appropriate use of the controls of the vehicle can be, transmitted to all the wheels of the vehicle.

(9) The conditions as to construction of dual-purpose vehicles referred to in subsection (8) of this section are the following:—

PART III
—cont.

(a) the vehicle must be permanently fitted with a rigid roof with or without a sliding panel:

(b) the area of the vehicle to the rear of the driver's seat must—

(i) be permanently fitted with at least one row of transverse seats (fixed or folding) for two or more passengers and those seats must be properly sprung or cushioned and provided with upholstered backrests attached either to the seats or to a side or the floor of the vehicle; and

(ii) be lit on each side and the rear by a window or windows of glass or other transparent material having an area, or aggregate area, of not less than 2 square feet on each side and not less than 120 square inches at the rear:

(c) the distance between the rearmost part of the steering wheel and the backrests of the row of transverse seats satisfying the requirements specified in paragraph (b) of this subsection (or if there is more than one such row of seats the distance between the rearmost part of the steering wheel and the backrests of the rearmost such row) must, when the seats are ready for use, be not less than one-third of the distance between the rearmost part of the steering wheel and the rearmost part of the floor of the vehicle.

17.—(1) Where any grass verge, garden or space which has been provided by a local authority in pursuance of the Act of 1957, or by a housing association in pursuance of arrangements made with a local authority under that Act, or any enactment repealed by that Act, or by any other person, is maintained in an ornamental condition or mown, the local authority may by notice prohibit any person from—

Verges, etc.,
of housing
estates.

(a) causing or permitting motor vehicles or caravans to enter upon any such grass verge, garden or space; or

(b) entering upon any such garden.

(2) Any such notice as is referred to in the foregoing subsection shall be conspicuously posted on, or in proximity to, the grass verge, garden or space to which it relates.

PART III
—*cont.*

(3) If any person (except in a case of emergency) contravenes a notice so posted he shall be liable to a fine not exceeding £20.

(4) Before exercising their powers under subsection (1) of this section in relation to any grass verge, garden or space provided by a housing association, the local authority shall consult the association.

(5) The powers of this section shall not be exercisable in relation to any grass verge, garden or space which forms part of a highway maintainable at the public expense.

**Touting,
hawking, etc.**

18.—(1) As from the appointed day in any district no person shall, at any place in the district to which this section applies—

(a) importune any person by touting for a hotel, lodging house or refreshment house, for a shop, for a theatre, garden, pier or place of amusement or for a boat, hackney carriage or public service vehicle; or

(b) without the consent of the local authority, which may be given on such terms and conditions as they think fit—

(i) hawk, sell or offer for sale any article or commodity; or

(ii) take a photograph by way of trade or business of any person except as mentioned in subsection (4) of this section.

(2) The local authority shall not withhold their consent under subsection (1) (b) of this section to the sale or offering for sale by any person of newspapers and periodicals except on the ground that their consent to such sale or offering for sale has already been given to a reasonably sufficient number of other persons.

(3) The prohibition imposed by subsection (1) (b) (i) of this section shall not apply to a sale or offering for sale to persons residing in, or employed at, premises in or adjoining a place to which this section applies.

(4) The prohibition imposed by subsection (1) (b) (ii) of this section shall not apply to the taking of a photograph for the purpose of making it available for publication in a newspaper or periodical if the photographer is employed as such by, or on behalf of, the owner or publisher of a newspaper or periodical, or carries on a business which consists of, or includes, selling or supplying photographs for such publication.

(5) This section applies to any place—

PART III
—cont.

- (a) in or on an esplanade, parade, promenade, marine drive or public walk;
- (b) in a park, pleasure ground or open space within the meaning of the Open Spaces Act 1906 which is provided 1906 c. 25. by the local authority, or under their management and control;
- (c) on the seashore;
- (d) in any street or part of a street to which this section applies by virtue of byelaws made by the local authority under this section.

(6) Any person aggrieved by the refusal of the local authority to give their consent under subsection (1) (b) of this section, or by any terms or conditions attached to a consent given by the local authority thereunder, may appeal to a magistrates' court.

(7) If any person contravenes any of the foregoing provisions of this section he shall be liable to a fine not exceeding £20.

(8) The provisions of this section shall not prevent the owner of any part of the seashore, or any person with his consent, exercising any rights which he could have exercised if this section had not been enacted.

19.—(1) A local authority, for the purpose of ascertaining whether or not an offence has been committed under section 1 of the Caravan Sites and Control of Development Act 1960, may by notice in writing, signed by their clerk or his lawful deputy, require the owner or reputed owner of any land in their district on which a caravan is stationed, or any person who, either directly or indirectly, receives rent in respect of such land, to state in writing the name and address of the occupier of such land, and any person who, having been required by a local authority in pursuance of this section to give to them any information, fails without good cause to give that information within twenty-eight days of being so required, or knowingly makes any mis-statement in respect thereof, shall be liable on summary conviction to a fine not exceeding £20.

Information as to occupiers of land on which caravans are stationed.
1960 c. 62.

(2) In this section “ occupier ” has the meaning assigned to it by section 1 (3) of the said Act of 1960.

PART III
—*cont.*

Destruction of documents connected with applications for permission for development.

20.—(1) At any time after a period of six years from the date of the receipt by the Council of an application for permission for development the Council may, after making the necessary entries in the register in accordance with the provisions of article 14 of the Town and Country Planning General Development Order 1963, and making provision for the retention of a copy of any notification of the grant of planning permission made in pursuance of the application, and any industrial development certificate issued in connection therewith, destroy any of the other documents received by them in connection with the application.

(2) In this section “document” means book, record, letter, map, plan, drawing, photograph or other document or any part thereof.

PART IV
HIGHWAYS

Interpretation for Part IV.

21.—(1) In this Part of this Act, unless the subject or context otherwise requires—

“code of 1875” and “code of 1892” have the same respective meanings as in section 173 of the Act of 1959;

“new street byelaws” means byelaws for regulating matters which may be regulated under section 157 of the Act of 1959;

“street works” and “street works authority” have the same respective meanings as in section 213 of the Act of 1959;

“structure” means a wall, fence, hoarding or similar erection, but for the purposes of this definition “wall” does not include a wall forming part of a permanent building.

(2) For the purposes of this Part of this Act, the erection of a building or structure shall be deemed to have begun at the time when the clearing of the site therefor began, or the excavation for the foundations thereof began, whichever is the earlier.

Enforcement of improvement line.

1925 c. 71.

22.—(1) In the case of a street in relation to which an improvement line has been prescribed under section 72 of the Act of 1959 or section 33 of the Public Health Act 1925, the highway authority may, for the purpose of avoiding obstruction to the view of persons using the street or other inconvenience or unsightliness arising from irregularity of the boundary of the street, by notice require the owner of any building, which, or any part of which, was beyond, or in front of, the improvement line at the time when the line was prescribed, to demolish, set back or alter the said building within such reasonable time as may be specified in the notice, not being less than six months from the date of the service of the notice, so that it shall not project beyond, or in front of, the improvement line.

(2) (a) If, within twenty-eight days of the date of the service by the highway authority of a notice under subsection (1) of this section, the person on whom the notice is served gives counter-notice to the highway authority objecting to any of the requirements specified in the notice and stating the reasons for his objection, the notice shall not take effect unless the counter-notice is withdrawn or the notice is confirmed by the tribunal either without modifications or subject to such modifications as the tribunal may determine.

(b) The tribunal shall not confirm a notice under subsection (1) of this section if it appears to them that—

- (i) the notice is not justified by the terms of that subsection;
- (ii) the highway authority have refused unreasonably to approve the execution of works alternative to those required by the notice, or the works so required are otherwise unreasonable in character or extent or are unnecessary; or
- (iii) the time specified in the notice within which the works are to be executed is not reasonably sufficient for the purpose;

and, in a case within sub-paragraphs (ii) and (iii) of this paragraph, that it would not be equitable to modify the notice.

(c) Without prejudice to the provisions of paragraph (b) of this subsection, the tribunal shall not confirm a notice under subsection (1) of this section where it appears to them that—

- (i) any requirement in the notice cannot be complied with without material detriment to the interest of the person on whom the notice is served in the building to which the notice relates, or the land on which it is situated, or any adjoining land in which that person has an interest; and
- (ii) that person is able and, in the circumstances of the case, willing to sell the building to the highway authority, with or without adjoining lands, on terms not less favourable to the highway authority than those on which they could have acquired the building under a compulsory purchase order made under section 214 of the Act of 1959 (which authorises the acquisition of lands for the improvement of streets) and the Acquisition of Land (Authorisation Procedure) Act 1946.

1946 c. 49.

(d) Where a notice under subsection (1) of this section has been confirmed by the tribunal it shall have effect as from the date on which the highway authority serve on the owner of the building to which it relates a copy of the notice as so confirmed.

PART IV
—cont.

(3) For the purpose of complying with any notice under subsection (1) of this section, the owner may, notwithstanding anything in any lease or other agreement but subject to the provisions of section 289 of the Act of 1936 as applied by this Act, enter upon any land or building affected by any requirement of the notice and carry out the work required by the notice.

(4) (a) Where a building is demolished, set back or altered in compliance with a notice under subsection (1) of this section, any owner or tenant thereof may recover from the highway authority compensation for the damage or loss sustained by him in consequence of the compliance, and the amount of the compensation shall, in case of dispute, be determined by the tribunal.

1961 c. 33.

(b) Rules 2 to 4 of the rules set out in section 5 of the Land Compensation Act 1961 (which provides rules for valuation on a compulsory acquisition) shall apply to the calculation of compensation under this subsection in so far as it is calculated by reference to the depreciation of the value of the interest of the owner or tenant in the building.

(5) In determining the amount of the compensation payable under this section to the owner or tenant of a building in a case where—

(a) he has an interest in land abutting on so much of the improvement line as, immediately before the service of the notice under subsection (1) of this section, intersected or abutted on the building or land occupied in connection therewith; and

(b) the value of his said interest is enhanced by reason of the widening or improvement of the street;

the amount of the enhancement in value shall be set off against the compensation.

(6) Where compensation is payable under this section in right of an interest in land which is subject to a mortgage—

(a) the compensation payable in respect of the depreciation of the value of that interest shall be assessed as if the interest were not subject to the mortgage;

(b) a claim for any such compensation may be made by any mortgagee of the interest, but without prejudice to the making of a claim by the person entitled to the interest;

(c) no compensation under this section shall be payable in respect of the interest of the mortgagee (as distinct from the interest which is subject to the mortgage); and

(d) the compensation payable in respect of the interest which is subject to the mortgage shall be paid to the mortgagee, or, if there is more than one mortgagee, to the first mortgagee, and shall in either case be applied by him as if it were proceeds of sale.

PART IV
—cont.

(7) If any person fails to comply with a notice under this section, he shall be liable to a fine not exceeding £100 and the highway authority may do all such things as may be necessary to comply with the notice and recover the cost of so doing from that person.

(8) In this section “ building ” includes a structure but, except as provided by paragraph (4) of section 113 (For protection of public utility undertakers) of this Act, does not include any building or structure of any public utility undertakers situated on their operational land.

23.—(1) After the passing of this Act, no part of any building (including the foundations) shall, except with the consent of the highway authority, be constructed so as to extend under any street in the county at a less depth than 6 feet below the surface of the street. Restriction on buildings under streets.

(2) Any person aggrieved by the withholding of a consent under subsection (1) of this section may appeal to a magistrates’ court.

(3) If any person contravenes the provisions of this section, he shall be liable to a fine not exceeding £100.

(4) (a) Before the highway authority determine to give any consent under this section, they shall give at least twenty-eight days’ notice of the application therefor to any public utility undertakers who appear to them to be concerned, and on giving any such consent shall attach thereto such conditions as may be reasonably required for the protection of any apparatus belonging to, or used or maintained by, those undertakers, or for securing access to such apparatus.

(b) As soon as may be after the highway authority have given a consent under this section they shall give notice thereof to any such public utility undertakers.

(c) The giving of consent by the highway authority, with or without such conditions as are referred to in paragraph (a) of this subsection, shall not relieve the owner or occupier of any building from any liability to any public utility undertakers to which he would have been subject if this section had not been enacted.

PART IV
—cont.

(d) Nothing in this section shall extend or apply to the construction of any building (not being a house or building to be used as offices) by any public utility undertakers or the British Railways Board in the exercise of their statutory powers.

Oil pipes and
manholes in
streets.

24.—(1) The owner or occupier of any premises situated under, or abutting on part of, a street in the county may, with the consent of the highway authority, provide—

- (a) pipes under the street for conveying oil for use or storage to such premises; or
- (b) manholes in the street in connection with any such pipes.

1925 c. 22.

1962 c. 37.

(2) In giving their consent under this section the highway authority may attach thereto such terms and conditions as they think fit, and such terms and conditions, and any conditions imposed by them under subsection (5) of this section, shall be binding on successive owners and occupiers of the premises and shall be treated for the purposes of the Land Charges Act 1925 as a local land charge and, for the purposes of Schedule 5 to the Building Societies Act 1962, as a charge acquired by a local authority taking effect by virtue of this section whether or not the highway authority are a local authority.

(3) Any person aggrieved by the withholding of a consent under subsection (1) of this section, or by any term or condition imposed by the highway authority under subsection (2) or subsection (5) of this section, may appeal to a magistrates' court.

(4) If any person carries out any works to provide pipes or manholes as aforesaid without the consent of the highway authority, or fails to comply with any term or condition imposed under subsection (2) or subsection (5) of this section, he shall, subject to any order made on appeal, but without prejudice to any other liability to which he may be subject, be liable to a fine not exceeding £50.

(5) (a) Before the highway authority determine to give any consent under this section, they shall give at least twenty-eight days' notice of the application therefor to any public utility undertakers who appear to them to be concerned, and on giving any such consent shall attach thereto such conditions as may be reasonably required for the protection of any apparatus belonging to, or used or maintained by, those undertakers, or for securing access to such apparatus.

(b) As soon as may be after the highway authority have given a consent under this section they shall give notice thereof to any such public utility undertakers.

(6) The Public Utilities Street Works Act 1950 shall not apply to the provision of pipes or manholes under subsection (1) of this section. 1950 c. 39.

(7) This section shall not apply to—

(a) any street belonging to, or repairable by, the British Railways Board; or

(b) a pipe-line (as defined in section 65 of the Pipe-lines Act 1962), being a pipe-line which may be placed in a street under the provisions of section 15 of the Pipe-lines Act 1962 and in exercise of the powers given by that section; or 1962 c. 58.

(c) the carrying out of any works in a street by public utility undertakers in the exercise of their statutory powers.

25.—(1) The highway authority may expunge or remove any picture, letter, sign or other mark painted or otherwise inscribed or affixed upon the surface of a highway or upon a tree, structure or works on or in a highway contrary to paragraph (cc) of section 117 (1) of the Act of 1959, as amended by section 7 of the Highways (Miscellaneous Provisions) Act 1961. Defacing of road surface, etc. 1961 c. 63.

(2) The court by which a person is convicted of an offence under the said section 117 may, whether or not it imposes a fine, by order require him to pay to the highway authority any expenses incurred by them in re-erecting, restoring or reinstating a traffic sign, milestone or direction post pulled down, damaged or obliterated contrary to subsection (2) (c) of the said section 117 or incurred by them under subsection (1) of this section.

26.—(1) Any person may, in connection with any building operations or work of demolition, or in connection with the alteration, repair, maintenance or cleansing of the exterior of any building, erect or place or cause to be erected or placed any scaffolding, obstruction or projection constituting an obstruction (each of which is hereafter in this section referred to as “scaffolding”), in, upon or over any street in the county if he has previously obtained a licence from the highway authority and complies with such terms and conditions as may be specified in the licence granted to him: Licence to erect scaffolding.

Provided that the highway authority shall be entitled to refuse a licence only on the grounds that the scaffolding would cause an avoidable or unreasonable obstruction of such street.

PART IV
—cont.

(2) Any scaffolding erected under a licence granted under this section shall be sufficiently lighted during the hours of darkness:

Provided that this subsection shall not apply to scaffolding projecting over the footway of a street but not over the carriageway if no part thereof is less than 8 feet above the level of the footway measured vertically and if the nearest part thereof to the carriageway is at least 1 foot 6 inches from the carriageway measured horizontally.

(3) If any person erects or places any scaffolding, or causes any scaffolding to be erected or placed, in, upon or over any street in the county without licence from the highway authority under this section or contravenes the terms or conditions of any licence granted to him under this section, he shall be guilty of an offence and shall be liable for every such offence to a fine not exceeding £50.

(4) Any person aggrieved by the withholding of a licence under this section, or by the terms and conditions specified in any such licence, may appeal to a magistrates' court.

(5) No licence shall be required under this section in respect of any scaffolding erected or placed temporarily by a person acting in an emergency, or by the British Railways Board for the purpose of constructing, reconstructing or maintaining any works in the exercise of their statutory powers.

(6) Before the highway authority grant any licence under this section they shall give to any public utility undertakers who appear to them to be concerned notice of their intention to do so, and on giving any such licence shall attach thereto such conditions as may be reasonably required for the protection of any apparatus belonging to, or used or maintained by, those undertakers, or for securing access to such apparatus.

Excavations
near highways.

27.—(1) This section applies to any excavation made after the passing of this Act on any land in the county within 30 feet from any highway maintainable at the public expense where any part of the excavation will, within the said distance of 30 feet, meet a plane drawn downwards in the direction of the excavation at an angle of 45 degrees to the horizontal from the line formed by the intersection of the plane of the level of the base of the foundations of the highway with the vertical plane of the boundary of the highway nearest to the excavation.

(2) Any person who makes, or executes works for the making of, an excavation to which this section applies shall take, in connection with the making of the excavation, or the execution of such works, such steps as may be necessary to prevent the withdrawal of support (whether vertical or lateral) for the highway, and if the making of any such excavation, or the execution of

works for the making of any such excavation, causes the withdrawal of support as aforesaid for the highway so that, for the purpose of removing danger so caused, it is reasonably necessary to restrict or prohibit the use of the highway by pedestrians or vehicles, or by vehicles of any particular class or description (not being vehicles of excessive weight to which section 62 of the Act of 1959 applies), the person responsible for the making of the excavation or the execution of such works as aforesaid shall, without prejudice to any obligation or liability to which he or any other person may be subject apart from this section, be guilty of an offence under this section.

(3) A person guilty of an offence under this section shall be liable, on conviction on indictment or on summary conviction, to a fine:

Provided that an offence under this section shall not be punishable on summary conviction by a fine exceeding £100.

(4) Proceedings for an offence under this section may be brought by the highway authority for the highway to which the proceedings relate.

(5) Subject to the provisions of section 30 (Exemption of owner from liability on conviction of actual offender) of this Act, for the purposes of this section the owner of the land on which an excavation is made shall be taken as being the person responsible for the making of the excavation or the execution of works for the making of the excavation.

(6) In any proceedings for an offence under this section it shall be a defence to prove—

- (a) that all practicable steps were taken to prevent the withdrawal of support; or
- (b) that before works for the making of the excavation were commenced, plans, sections and particulars thereof were submitted to the highway authority and approved by them and the said works were executed and the excavation made in accordance with the plans, sections and particulars so approved.

28.—(1) The provisions of section 27 (Excavations near highways) of this Act shall not apply to—

- (a) any excavation made in the course of carrying out undertakers' works to which the Public Utilities Street Works Act 1950 applies; or
- (b) any other excavation made by a river authority, or any statutory undertakers, in the exercise of their statutory powers in respect of which the following conditions have been fulfilled:—
 - (i) not less than twenty-eight days before commencing the excavation plans are submitted to the highway authority for their reasonable approval;

Exemption
for river
authorities
and statutory
undertakers,
1950 c. 39.

PART IV
—cont.

(ii) the excavation is not commenced until the plans have been approved in writing by the highway authority or settled by arbitration:

Provided that if the highway authority do not within twenty-eight days after the submission to them of any such plans signify in writing their disapproval thereof they shall be deemed to have approved thereof;

(iii) the excavation is carried out in accordance with the plans approved, deemed to have been approved or settled by arbitration.

(2) Any question arising between the highway authority and a river authority or any statutory undertakers under this section shall be determined by arbitration.

(3) In this section—

“ plans ” includes sections and particulars; and

“ river authority ” includes any drainage authority within the meaning of the Land Drainage Act 1930.

1930 c. 44.

Building
operations
affecting
public safety.

29.—(1) This section applies to building operations, being operations for the construction, repair or demolition of any building, carried out on land in the county.

(2) Any person who, after the passing of this Act, carries out building operations to which this section applies shall secure that the operations are so carried out as to cause no danger to persons in any street, and if in the course of the carrying out of such building operations there is any accident which gives rise to the risk of serious bodily injury to a person in a street, whether or not the death or disablement of any person is caused thereby, or which, but for the taking, by or on behalf of a local or highway authority, of steps to remove immediate danger under section 58 of the Act of 1936 or sections 24 to 29 of the Public Health Act 1961 or section 42 of the Act of 1956, would give rise to such risk, the person responsible for the part of the building operations in the course of the carrying out of which such accident happens shall, without prejudice to any obligation or liability to which he or any other person may be subject apart from this section, be guilty of an offence under this section.

1961 c. 64.

(3) A person guilty of an offence under this section shall be liable on summary conviction to a fine not exceeding £100.

(4) Subject to the provisions of section 30 (Exemption of owner from liability on conviction of actual offender) of this Act, for the purposes of this section, the owner of the land or building on which building operations are carried out shall be taken as being the person responsible for those operations.

(5) Proceedings for an offence under this section may be brought by the highway authority for the street to which the proceedings relate.

PART IV
—cont.

(6) In any proceedings for an offence under this section it shall be a defence to prove that all reasonably practicable steps were taken to secure that the building operations were carried out so as to avoid causing danger to persons in any street.

30.—(1) Where proceedings are brought for an offence under section 27 (Excavations near highways) or section 29 (Building operations affecting public safety) of this Act against the owner of any land or building, he shall be entitled, on information duly laid by him and on giving to the prosecution, not less than three days before the date of the hearing, notice in writing of his intention to do so, to have brought before the court in the proceedings—

Exemption of owner from liability on conviction of actual offender.

(a) any other person who has undertaken to be responsible—

(i) in the case of proceedings for an offence under the said section 27, for the making of the excavation in question or the execution of the works in question; or

(ii) in the case of proceedings for an offence under the said section 29, for the building operations, or part thereof, in question; or

(b) any other person who, by reason of the fact that he had in his charge or subject to his direction the making of the excavation or the execution of the works or the carrying out of the building operations, or part thereof (as the case may be), ought to be taken to be responsible as aforesaid;

being the person whom the owner charges as the offender; and if, after the commission of the offence has been proved, the owner proves to the satisfaction of the court that the offence was committed by the person whom the owner charges as the offender that person shall be convicted of the offence, and, if the owner further proves that the offence was committed without his consent, connivance or wilful default, he shall be acquitted of the offence.

(2) (a) The prosecution as well as the person whom the owner charges as the offender shall have the right in any such case as aforesaid to cross-examine the owner, if he gives evidence, and any witnesses called by him in support of his charge and to call rebutting evidence.

(b) The court may make such order as it thinks fit for the payment of costs by any party to the proceedings to any other party thereto.

PART IV
—cont.

(3) Where the Council, the highway authority or the local authority (as the case may be) are reasonably satisfied—

- (a) that a person other than the owner has undertaken to be responsible, or ought to be taken to be responsible, as aforesaid and should be charged as the offender; and
- (b) that the offence has been committed without the consent, connivance or wilful default of the owner;

they shall proceed against the person whom they consider to be the offender without first proceeding against the owner.

Temporary
prohibition
of traffic
during
execution
of works.

31.—(1) Where the highway authority are satisfied—

- (a) that traffic on any street for the maintenance of which they are responsible should, by reason of any works being executed or proposed to be executed on or near the street, be prohibited or restricted; and
- (b) that it is desirable that such prohibition or restriction should come into force without delay and that for this reason it is not expedient to effect the same by means of an order made under section 12 (1) of the Act of 1967;

they may by notice prohibit or restrict for any period not exceeding twenty-four hours the use of that street, or any part thereof, by vehicles, or by vehicles of any particular class or description, to such extent and subject to such conditions and exceptions as they may consider necessary:

Provided that the powers conferred on the highway authority by this section shall not be exercised—

- (i) in relation to any street or any part thereof on more than one occasion in any period of seven consecutive days; or
- (ii) in relation to any street upon which public service vehicles are authorised by a road service licence to operate unless the highway authority give not less than forty-eight hours' previous notice to the traffic commissioners and to the operators of the public service vehicles so licensed; or
- (iii) so as to obstruct or interfere with the access to, or exit from, any colliery, coke ovens, rescue station, landsale depot or opencast site belonging to the National Coal Board, or to or from any station or depot of the British Railways Board, or of any passenger road transport operators.

(2) The provisions of subsections (3) to (5) and (8) to (11) of section 12 of the Act of 1967 shall extend and apply for the purposes of this section as if any notice issued by the highway authority under subsection (1) of this section had been issued under subsection (2) of that section.

(3) No prohibition or restriction on the use of any street under the powers of this section shall make it unlawful for public utility undertakers to enter upon such street in a case of emergency, with any necessary vehicles, for the purpose of inspecting, repairing, maintaining, renewing or removing (as the case may be) any apparatus of the undertakers concerned which, at the time of the imposition of such prohibition or restriction, is in that street.

32.—(1) For the purpose of—

- (a) making any new street; or
- (b) providing a parking place for vehicles under section 28 of the Act of 1967;

a local authority may break up, and for any reasonable time stop up, divert and interfere with, any street in their district and divert the traffic therefrom and prevent persons using it:

Provided that the local authority shall not exercise the powers of this section—

- (i) as respects any trunk road, without the consent of the Secretary of State; or
- (ii) as respects any county road, without the consent of the Council; or
- (iii) so as to deprive foot-passengers bona fide going to or from any building or land in the street of reasonable access to the building or land; or
- (iv) so as to obstruct, or interfere with, the access to, or exit from, any colliery, coke ovens, rescue station, landsale depot or opencast site belonging to the National Coal Board; or
- (v) so as to obstruct, or interfere with, the access to, or exit from, any station, dock, wharf or depot of any railway, dock, canal, inland navigation or passenger road transport undertakers.

(2) A local authority, when considering the question of exercising their powers under this section, shall have regard to the existence of alternative routes suitable for the traffic which will be affected.

(3) The provisions of Schedule 3 to the Act of 1967, so far as applicable, shall apply in respect of the exercise by a local authority of the powers of subsection (1) of this section as they apply in respect of the making by a highway authority of an order under section 12 (1) of that Act.

33.—(1) Where for the convenience of persons using a trunk road or county road it appears to the Council to be necessary to provide parking places for vehicles, they shall have for such purpose the powers of a local authority under the provisions of sections 28 to 32 of the Act of 1967, other than subsections (1), (2), (5) and (7) of section 29 of that Act, to provide in the county

Provision
of parking
places on
trunk roads
and county
roads.

PART IV
—cont.

parking places (other than underground parking places); and the said powers, as extended to the Council by virtue of this section, shall include powers to provide and maintain any camping places, refreshment rooms, office accommodation, shelters, cloakrooms or other conveniences for use in connection with any such parking place.

(2) Accordingly, the provisions of the said sections 28 to 32, in their application to the Council, shall have effect as if—

(a) references to a parking place were construed as including references to any such camping places, refreshment rooms, office accommodation, shelters, cloakrooms or other conveniences;

1959 c. 25.

(b) in section 28 (1) for the words “ purpose of relieving or preventing congestion of traffic ” there were substituted the words “ convenience of persons using a trunk road or county road within the meaning of the Highways Act 1959 ” and the words “ whether above or below ground and ” were omitted;

(c) for section 28 (5) there were substituted the following subsection:—

“ (5) Any power conferred by this section to provide a parking place includes power to maintain it and any buildings comprised in it ”; and

(d) in section 28 (6) the words from “ and for the purposes of this section ” to the end of the subsection were omitted;

(e) section 28 (8) and section 31 (5) were omitted.

(3) Where the Council propose to acquire any land or to utilise any land appropriated by them for the purposes of subsection (1) of this section, they shall, before carrying the proposal into effect—

(a) cause notice of the proposal (specifying the land to which it relates and notifying the period, which shall not be less than twenty-eight days, within which any representations relating to the proposal shall be sent in writing to the Council) to be published in at least one newspaper circulating in the area in which the land is situated and a copy of the notice to be posted for not less than fourteen days on, or adjacent to, the land; and

(b) consider any representations which are sent to them in writing within the time fixed in that behalf and give notice of their decision on the representations to the person by whom they were made.

(4) The Council shall not themselves provide or sell refreshments at any refreshment room or other premises provided for the purposes of subsection (1) of this section, and any refreshment room or other premises so provided shall be disqualified for receiving a licence granted by licensing justices under the Licensing Acts 1953 to 1961, other than a restaurant licence within the meaning of section 1 of the Licensing Act 1961.

PART IV
—cont.

1961 c. 61.

34.—(1) The provisions of section 87 (2) of the Act of 1936 shall extend so as to authorise the Council to provide public sanitary conveniences in, on or under any land which is adjacent to, but which does not form part of, a county road or a trunk road in the county, and the provisions of section 87 (3) of the Act of 1936 shall apply accordingly:

Extension of
power to
provide public
conveniences.

Provided that the powers of this subsection shall not be exercised in relation to a trunk road, or in relation to any land acquired by the Secretary of State in connection with a trunk road under section 214 (5) or (6) of the Act of 1959, or under section 215 of that Act, without his consent.

(2) The Council may enter into an agreement—

- (a) with any person for the provision by him of any public sanitary conveniences which the Council have power to provide; and
- (b) with the owner and occupier of any such premises as are referred to in section 89 (1) of the Act of 1936 or the owner and occupier of any premises comprising a petroleum filling station, as defined in the Petroleum (Consolidation) Act 1928, for the provision by him, in addition to any sanitary conveniences provided for the use of persons employed at or frequenting such premises, of additional sanitary conveniences for the use of members of the public;

1928 c. 32.

and any such agreement may contain such incidental and consequential provisions as appear to the Council to be necessary or expedient for the purposes of the agreement including in particular, but without prejudice to the generality of the foregoing, provision for—

- (i) a contribution, whether by way of a loan or otherwise, by the Council towards the reasonable expenses incurred by any person in providing and maintaining sanitary conveniences for the use of members of the public;
- (ii) the charges to be made to persons making use of any such conveniences, other than urinals;
- (iii) the regulation of the use of any such conveniences.

PART IV

—*cont.*

Prohibition of
parking or
camping on
highway
verges, etc.

35.—(1) In this section “appropriate authority” means—

- (a) in the case of a trunk road, with the consent of the Secretary of State, the authority who are for the time being acting as his agent under the Act of 1959 with respect to that road;
- (b) in the case of a county road, except a claimed county road, the Council;
- (c) in the case of a claimed county road and any other road, the local authority for the district in which the highway is situated.

(2) (a) The appropriate authority may by order prohibit the placing and leaving of any vehicle, trailer, caravan or tent on the verge of, or on unenclosed land adjacent to, any part or parts of any road in the county.

(b) In this subsection “unenclosed land” means any waste land adjacent to, and within 15 yards of, the road and any common land or other unenclosed land of whatsoever description within that distance from the road.

(3) If any person contravenes the provisions of an order under this section, he shall be liable to a fine not exceeding £20 and to a daily fine not exceeding £5.

(4) Before determining to make an order under this section, the appropriate authority shall have regard to the availability of—

- (a) suitable parking facilities (whether on or off the road and whether provided by the appropriate authority or by some other person) for use as an alternative to any verge or land which, before the making of the order, has been lawfully used for parking; and
- (b) public sanitary conveniences in convenient situations.

(5) (a) An order made under this section shall—

- (i) take effect from such date as may be specified in the order;
- (ii) specify the road or roads and any unenclosed land to which it is to apply; and
- (iii) specify the days and hours between 9 o'clock in the evening and 9 o'clock in the morning during which the prohibition applies;

and may specify exceptions (other than those provided in subsection (10) of this section) from the prohibition thereby imposed.

(b) An order made under this section may at any time be altered or revoked by a subsequent order made in like manner.

PART IV
—cont.

(6) Before making any order under this section in relation to any road or land, the appropriate authority shall publish in one or more local newspapers circulating in the area in which the road or land is situated a notice—

- (a) stating the general effect of the order;
- (b) specifying the offices of every local authority in whose district the road or land is situated where a copy of the draft order may be inspected by any person free of charge at all reasonable hours during a period of twenty-eight days from the date of the first publication of the notice; and
- (c) stating that, within the said period, any person may by notice to the Secretary of State object to the making of the order.

(7) The appropriate authority shall also publish a notice in the London Gazette stating that they are about to make an order under this section, naming the area in which any road or land to which the order will apply is situated, specifying the offices of every local authority in whose district any part of the road or land is situated where a copy of the draft order may be inspected, and giving the name and date of issue of a local newspaper in which the notice explaining the general effect of the order will be found.

(8) (a) If before the expiration of a period of twenty-eight days from the first publication of the notice referred to in subsection (6) of this section or of twenty-five days from the publication of the notice in the London Gazette, an objection to the making of the order to which the notice relates is duly made to the Secretary of State and the objection is not withdrawn, the order shall not take effect until it is confirmed by the Secretary of State.

(b) Where the Secretary of State receives any objection to the making of an order he shall send to the appropriate authority a copy of every such objection and the Secretary of State, after considering every such objection and causing, if he thinks fit, a local inquiry to be held, may confirm the order with or without modifications.

(9) Where an order has been made and confirmed under this section, the appropriate authority shall erect, or cause to be erected, on or near any road or land to which such an order applies notices indicating the nature and extent of the prohibitions imposed by the order.

(10) (a) No order made under this section shall apply to the placing and leaving on a verge or land of—

- (i) any vehicle, trailer, caravan or tent if it is not left for more than two hours;

PART IV
—cont.

- 1968 c. 52.
- (ii) any vehicle, trailer, caravan or tent by or with the consent of the occupier of the land;
 - (iii) any vehicle, trailer or caravan placed and left because of, or in connection with, mechanical breakdown;
 - (iv) any vehicle, trailer, caravan or tent placed and left because of the illness of any person accompanying any such vehicle, trailer, caravan or tent;
 - (v) any vehicle when in use solely for the purpose of itinerant trading with the occupants of premises adjoining a verge or land;
 - (vi) any vehicle, trailer or caravan the stationing of which is prohibited under section 10 of the Caravan Sites Act 1968 or would be prohibited under that section if the county were designated by an order made under section 12 of that Act;
 - (vii) any vehicle, trailer, caravan (not used for human habitation) or tent used by any river authority or public utility undertakers in the exercise of their statutory powers, or by the highway authority or the local authority in, or in connection with, the exercise of their statutory functions.

1962 c. 38.
1960 c. 62.

(b) No order made under this section shall apply to any land on which tents or caravans are erected or placed in accordance with the terms of a licence granted under section 269 of the Act of 1936 or in accordance with any terms and conditions on which permission has been given for development by the local planning authority under the provisions of the Town and Country Planning Act 1962, or in respect of which a site licence is for the time being in force under Part I of the Caravan Sites and Control of Development Act 1960.

Extension of
parish
councils'
powers to
provide
parking
places.

36.—(1) The powers of a parish council under section 46 of the Act of 1967 to provide parking places for bicycles and motor cycles shall extend to authorise a parish council to provide parking places for other vehicles in the circumstances and subject to the conditions prescribed by that section and by section 47 of the Act of 1967.

(2) For the purpose of exercising the powers of the said section 46 as extended by this section the following provisions of the Act of 1967 shall apply to a parish council as they apply to a local authority, namely:—

subsections (5) and (8) of section 28; subsections (1) to (3), (5) to (7) and (9) of section 29; section 30; subsections (1) to (6) of section 31; and section 96.

(3) The provisions of section 48 of the Act of 1967 shall apply to the exercise by a parish council of the powers of this section as they apply to such a council in the exercise of the powers of section 46 of that Act.

37.—(1) A rural district council or parish council may provide, erect and maintain in proper and convenient situations within their district or parish such place-name signs as they may from time to time determine:

PART IV
—cont.
Erection of
place names.

Provided that no such sign shall be erected on land forming part of, or adjacent to, a highway except with the consent of the highway authority and in accordance with such conditions as the highway authority may require.

(2) Any sign provided or erected under this section shall comply with any order or regulation made by the Secretary of State in respect of traffic signs, or any general or special directions given by the Secretary of State, in pursuance of the Act of 1967.

38. A rural district council may at any time resolve to bear the whole or a portion of the expense of any street works in their district under the code of 1892, and where a rural district council so resolve the liabilities of the owners of premises in respect of those expenses shall be treated as discharged, or as proportionately reduced, accordingly.

Power for
rural district
councils to
contribute
to cost of
private street
works.

39.—(1) Where any street works in the county have been completed by a street works authority but they are unable to recover the amount due from the owner of any premises or otherwise under the code of 1892 by reason of the fact that such owner is unknown and cannot, after diligent inquiry made when the said amount becomes due and at reasonable intervals thereafter, be found, the street works authority may, at any time after the expiration of twelve years from the date when the said amount becomes due, apply to the county court and that court may, on the receipt of such application and on being satisfied that the provisions of this subsection have been complied with, make an order vesting the said premises in the street works authority absolutely, and thereupon the street works authority may appropriate the said premises subject to, and in accordance with, the provisions of section 163 of the Act of 1933, as if the said premises were land which was not required for the purpose for which it was acquired.

Recovery of
street works
charges where
owner
unknown.

(2) Where the county court makes an order under subsection (1) of this section the tribunal shall, for the purpose of determining the value of the said premises, nominate one of their members selected in accordance with section 1 (6) and section 3 of the Lands Tribunal Act 1949, and the member nominated shall determine the value accordingly and shall annex to his valuation a declaration in writing subscribed by him of the correctness thereof, and the street works authority shall thereupon pay into court a sum equal to the amount of such valuation, after deduction of the amount of the final apportionment in respect of the said premises, with interest thereon for a period of six years at the rate of 5 per centum per annum, or at

1949 c 42

PART IV
—cont.

such other rate as may have been fixed by order of the Secretary of State under section 212 of the Act of 1959 together with all costs and expenses reasonably incurred by the street works authority.

1965 c. 56.

(3) Any payment into court under subsection (2) of this section shall be made in accordance with section 25 of the Compulsory Purchase Act 1965, and section 9 (5) of that Act shall apply to any such payment into court.

(4) The powers conferred by subsection (1) of this section shall be exercisable by the street works authority in addition to any existing rights, powers and remedies for the recovery of expenses and shall be exercisable by the street works authority in respect of all street works whether completed before or after the passing of this Act.

(5) In relation to a street works authority which is a borough or an urban district council this section shall have effect as if for reference to the code of 1892 there were substituted reference to the code of 1875 or the code of 1892, whichever shall be the appropriate code.

Access to
new streets.

40.—(1) Where a plan and sections of a new street deposited with a local authority in pursuance of new street byelaws are approved by them, they may, for the purpose of securing adequate means of communication between the new street and any other street, whether existing or intended, by notice prohibit the erection, planting or retention of any structure or hedge at either end of the new street on land belonging, at the time of the deposit, to the owner of the land upon which the new street is proposed to be constructed or laid out:

Provided that—

(a) no such notice shall affect any structure or hedge existing at the time of the deposit until both the new street and that other street have become highways maintainable at the public expense;

(b) no such notice shall apply to the erection of any structure in accordance with a planning permission given in pursuance of an application therefor made to the local planning authority under the Town and Country Planning Act 1962.

1962 c. 38.

(2) Such a notice shall be given to the person by whom or on whose behalf the plan and sections were deposited; and the prohibition imposed thereby shall be binding on successive owners of the land to which it relates.

(3) If any person contravenes a notice under this section he shall be liable to a fine not exceeding £100, and the local authority may remove the structure or hedge and recover the expenses of so doing from that person.

(4) This section shall have effect subject to the provisions of the Land Charges Act 1925, as amended by the Law of Property (Amendment) Act 1926, with respect to the avoidance of any such notice for want of registration as a local land charge.

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—cont.

1925 c. 22.
1926 c. 11.

PART V

FIRE PROTECTION AND PUBLIC SAFETY

41.—(1) Where plans of any proposed work deposited with a local authority in pursuance of building regulations include proposals for the construction, alteration or extension of an underground parking place, or the alteration of a building for use as an underground parking place, the local authority may, notwithstanding anything in section 64 of the Act of 1936, reject the plans unless there are put before them such proposals as appear to them to be satisfactory for preventing or reducing danger from fire, being proposals relating to all or any of the following matters:—

- (a) the construction of the underground parking place and the approaches thereto and the materials to be used in such construction;
- (b) the provision of adequate means of ventilation of the underground parking place;
- (c) the provision of electrical and mechanical and heating equipment in the underground parking place;
- (d) the provision of a satisfactory emergency lighting system in connection with the underground parking place;
- (e) the provision of fire-fighting equipment and appliances in connection with the underground parking place;
- (f) the provision of safe and adequate means of ingress to, and egress from, the underground parking place;
- (g) the provision of adequate means for preventing flammable substances from being admitted to any drainage system forming part of the underground parking place;
- (h) the provision of adequate means of access to the underground parking place for fire brigade appliances and personnel.

(2) Section 64 (2) and subsections (2) to (5) of section 65 of the Act of 1936 shall have effect as if this section were a section of that Act.

(3) If any question arises between the local authority and a person who has executed or proposes to execute any work—

- (a) whether the work is such as is mentioned in subsection (1) of this section; or
- (b) whether the local authority ought to have treated as satisfactory any proposal put before them in pursuance of the said subsection;

PART V
—cont.

that question may, on the application of that person, be referred to the Secretary of State for determination, and the Secretary of State shall determine any question submitted to him under paragraph (a) of this subsection or, as the case may be, may direct the local authority to treat as satisfactory the said proposal or the said proposal as modified by him.

(4) If, after plans of any underground parking place have been passed by the local authority in consequence of any proposals made under subsection (1) of this section, it appears to the local authority that any such proposal has not been carried into effect or is not being observed, the local authority may by notice to the owner or occupier of the underground parking place prohibit its use as an underground parking place until the proposal has been carried into effect or is being observed.

(5) If any person on whom a notice has been served under subsection (4) of this section uses the underground parking place, or permits it to be used as an underground parking place, without giving effect to, or securing the observance of, any proposal specified in the notice, he shall be liable to a fine not exceeding £200.

Further
provision
as to
underground
parking
places.

42.—(1) Without prejudice to the provisions of section 41 (Underground parking places) of this Act, the local authority may, by notice to the owner or occupier of any underground parking place in the district which is first brought into use after the passing of this Act, require compliance with such conditions as to the use of the underground parking place as may be specified in the notice for the purpose of preventing or reducing danger from fire therein, and, in the case of any underground parking place as aforesaid in respect of which plans are not deposited with the local authority in pursuance of building regulations, the local authority may, by notice to the owner or occupier thereof, require him to comply with such conditions as aforesaid and with such other conditions with regard to the matters specified in paragraphs (b) to (h) of subsection (1) of the said section 41 as the local authority think fit.

(2) If any person on whom a notice under this section has been served fails to comply with any requirements specified in the notice, he shall be liable to a fine not exceeding £100.

(3) A person on whom a notice under this section has been served may within twenty-one days of the service of the notice appeal to the Secretary of State on the ground that any requirement specified in the notice is not justified by this section or is unreasonable in character or extent or is unnecessary.

(4) If so required by any such person the local authority shall deliver to him a certificate signed by their clerk stating the grounds on which the local authority have made any requirement under

this section, and, where such person appeals to the Secretary of State against such requirement, the certificate shall be submitted by him to the Secretary of State at the same time that notice of appeal is given, or as soon as possible after the receipt by such person of the certificate.

(5) On consideration of any such appeal the Secretary of State may, if he thinks fit, confirm, modify, alter or annul any requirement made by the local authority under this section.

43.—(1) In the last two foregoing sections “underground parking place” means a building or part of a building (other than a building or part of a building in respect of which a licence issued by a local authority or the Secretary of State under section 2 or 3 of the Petroleum (Consolidation) Act 1928 is in force, or a building or part of a building to which regulations made by the Secretary of State under section 10 of that Act apply) which provides waiting space or storage space, either alone or in addition to any other facility or service, for motor cars or other vehicles, and of which any part of the floor is situated more than 4 feet below the surface of the ground adjoining or nearest to such building or part of a building.

Interpretation and powers of entry for purposes of last two foregoing sections. 1928 c. 32.

(2) For the purposes of section 287 (1) (a) of the Act of 1936 as applied by this Act, the provisions of the last two foregoing sections shall be provisions which it is the duty of the local authority to enforce.

44.—(1) As from the appointed day in any district, any person intending to install or place oil-burning equipment in any building in the district, whether erected before or after the passing of this Act, or on any land in the district, shall give not less than fourteen days’ notice to the local authority of his intention to do so.

Oil-burning equipment.

(2) (a) The Council, if requested to do so by a local authority, may make byelaws for securing that, in relation to any oil-burning equipment so installed or placed after the coming into operation of the byelaws, proper arrangements are made for preventing or reducing danger from fire.

(b) Byelaws made under this section may prescribe the works, apparatus and fittings and fire-fighting appliances to be provided in connection with the installation or placing of oil-burning equipment in any building, or on any land, and the mode of arrangement of any such works, apparatus, fittings and appliances.

(c) The confirming authority in respect of byelaws made under this section shall be the Secretary of State, and in relation thereto section 250 of the Act of 1933 (which makes provision as to the procedure for making and confirming byelaws) shall have effect as if, in subsection (6) thereof, after the word “confirm” where it

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—cont.

secondly occurs there were inserted the words “ or confirm with modifications ” and as if at the end of the said subsection (6) there were added the following proviso:—

“ Provided that, if so directed by the confirming authority, the local authority shall cause notice of any proposed modification to be given in accordance with such directions before any byelaw is confirmed with modifications.”

(3) (a) Any oil-burning equipment installed or placed in accordance with plans and specifications submitted to, and passed by, the local authority shall, for the purposes only of this section, be deemed to be approved by the local authority as complying with the appropriate specification for such equipment contained in the byelaws in respect of all matters shown in the plans and specifications so passed.

(b) If the local authority do not, within two months from the submission of plans and specifications of any equipment under this subsection, notify the person by whom they were submitted of the rejection or passing of the said plans and specifications, they shall be deemed to have passed them.

(4) If, in relation to the installation or placing of any oil-burning equipment in any building or on any land, the local authority are satisfied that proper arrangements will be made for preventing or reducing danger from fire, they may, on the application of the person proposing to install or place such equipment, approve the installation or the placing of the equipment notwithstanding that it may not comply with the appropriate specification for such equipment contained in the byelaws.

(5) (a) Any person aggrieved by the refusal of the local authority to approve the installation or placing of any equipment under subsection (4) of this section may, within twenty-one days from the receipt of notification of the refusal, appeal to the Secretary of State.

(b) Where an appeal is brought under this subsection the Secretary of State may dismiss or allow the appeal, or may vary the decision of the local authority against which the appeal is made.

(c) The decision of the Secretary of State on any such appeal shall have effect as if it were a decision of the local authority given under this section.

(6) For the purposes of section 287 (1) (a) of the Act of 1936 as applied by this Act, the provisions of this section, and of any byelaws made thereunder, shall be provisions which it is the duty of the local authority to enforce.

(7) (a) If any person installs oil-burning equipment in any building or on any land in a district without giving notice to the local authority in accordance with subsection (1) of this section, he shall be liable to a fine not exceeding £20.

(b) If any person contravenes any byelaw made under subsection (2) of this section, he shall be liable to a fine not exceeding £50, and if—

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—cont.

- (i) that person, after conviction of the contravention; or
- (ii) any other person, after notice of the conviction has been served on him by the local authority;

uses the oil-burning equipment in contravention of that byelaw, he shall be liable to a fine not exceeding £5 for each day on which he so uses it.

(8) In this section—

“oil-burning equipment” means a boiler designed or adapted for the combustion of oil and includes the burner, the storage tanks and the apparatus, fittings, devices and catch-pits and any other equipment used for, or in connection with, the heating of the boiler;

“boiler” means a boiler, furnace, heater, oven or similar plant;

“storage tank” means a tank, container or device designed or adapted for the purpose of supplying oil to a boiler;

“apparatus” and “fittings” include pipes and pipe fittings, taps, valves, pumps, gauges, vessels, fans and filters.

(9) Nothing in this section or any byelaws made thereunder shall apply to—

(a) any oil-burning equipment if the storage tank or tanks supplying, or designed or adapted to supply, oil to the boiler has or have a total capacity not exceeding 750 gallons; or

(b) the installation of any oil-burning equipment in any building in respect of which a licence under the Cinematograph Acts 1909 and 1952 or the Theatres Act 1968 is for the time being in force; or

1968 c. 54.

(c) the installation by any statutory undertakers for the purposes of their respective undertakings, of any oil-burning equipment in or on any building or land, other than in houses or in buildings used as offices or show-rooms not being, in the case of the British Railways Board, buildings so used which form part of a railway station.

(10) The provisions of any byelaw made under this section shall cease to apply in relation to any premises to which the

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—cont.

1961 c. 34.

Factories Act 1961 applies on the coming into force in relation to those premises of regulations made under that Act and relating to the same subject-matter as this section.

Fire
precautions
in certain
large
buildings.

45.—(1) No building of the warehouse class and no building used, or intended to be used, for the purpose of trade or manufacture shall be erected in the county of a cubic extent exceeding 250,000 cubic feet, or extended to exceed that extent, unless (in accordance with plans and particulars submitted in accordance with building regulations and approved for the purposes of this section by the local authority of the district in which the building is to be erected or is situated) it is—

- (a) provided with all such means of escape therefrom in case of fire as may be reasonably required; and
- (b) (if the local authority in all the circumstances think it necessary) fitted with automatic fire alarms and a fire extinguishing system or with either such alarms or such system to the satisfaction of the local authority:

Provided that—

- (i) nothing in paragraph (a) of this subsection shall apply to a factory to which section 40 of the Factories Act 1961 applies, to buildings to which section 59 of the Act of 1936 applies, or to premises to which the Offices, Shops and Railway Premises Act 1963 applies;
- (ii) nothing in paragraph (b) of this subsection, so far as it relates to the provision of fire alarms, shall apply to a factory to which section 48 (7) of the said Act of 1961 applies, or to premises to which section 34 of the said Act of 1963 applies, or, so far as it relates to the provision of a fire extinguishing system, shall apply to a factory to which section 51 (1) of the said Act of 1961 applies, or to premises to which the said Act of 1963 applies.

1963 c. 41.

(2) (a) The person proposing to erect, or cause to be erected, or extend, or cause to be extended, any building to which subsection (1) of this section applies shall, when submitting plans and particulars in accordance with building regulations, deposit with the local authority particulars showing how it is proposed to comply with the requirements of subsection (1) (a) and (b) of this section.

(b) A local authority at any time within a period of two months after the deposit of the particulars may, irrespective of any decision under building regulations—

- (i) refuse to approve them; or

- (ii) approve them subject to such conditions (if any) as they think fit.

(c) Where a local authority refuse to approve the particulars or approve them subject to conditions, they shall give to the person who deposited the particulars notice stating their reasons for refusal or for the imposition of conditions:

Provided that if within the said period of two months the local authority fail to give such notice they shall be deemed to have approved the said particulars.

(3) (a) If any building to which subsection (1) of this section applies is erected or extended in contravention of any of the requirements of paragraphs (a) or (b) of that subsection, the local authority, without prejudice to their rights to take proceedings for penalties in respect of the contravention, may by notice require the person erecting or causing to be erected the building or extension either to pull down and remove it or, if he so elects, to effect such alterations therein as may be necessary in order to comply with the said requirements.

(b) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under this subsection as they apply in relation to the notices mentioned in subsection (1) of that section.

(4) All means of escape, fire alarms and fire extinguishing systems provided or fitted (as the case may be) in accordance with the requirements of subsection (1) (a) and (b) of this section shall be properly maintained and kept free from obstruction.

(5) (a) A person who erects, or causes to be erected, or extends, or causes to be extended, a building in contravention of any of the provisions of this section shall be guilty of an offence under this section.

(b) The occupier of any premises who fails to maintain the means of escape, fire alarms and fire extinguishing systems provided or fitted (as the case may be) under the requirements of subsection (1) (a) and (b) of this section, or to keep them free from obstruction, shall be guilty of an offence under this section.

(c) A person who commits an offence under this section shall on summary conviction be liable to a fine not exceeding £200.

(6) Any person aggrieved by—

- (a) a requirement of a local authority; or
- (b) a refusal by a local authority to approve particulars; or
- (c) a condition subject to which approval of particulars is given by a local authority;

PART V
—cont.

under subsection (1) or (2) of this section may appeal to a magistrates' court, and on any such appeal the court may confirm, reverse or vary such requirement, refusal or condition.

(7) Any member of the fire brigade of the county who is duly authorised for the purpose shall, on producing, if so required, some duly authenticated document showing his authority, have a right to enter at all reasonable times any building to which subsections (1) to (3) of this section apply—

- (a) for the purpose of ascertaining whether there is, or has been, in, or in connection with, the building, any contravention of the provisions of this section;
- (b) for the purpose of ascertaining whether or not circumstances exist which would authorise a local authority to take any action under this section.

(8) The provisions of subsections (2), (3) and (4) of section 287 of the Act of 1936 shall apply to entry into a building for the purposes of subsection (7) of this section as they apply to entry into premises for the purposes of subsection (1) of that section.

(9) Nothing in this section shall apply to any building—

- (a) in respect of which a licence under the Cinematograph Acts 1909 and 1952 or the Theatres Act 1968 is for the time being in force; or
- (b) which is exempted from the provisions of Part II of the Act of 1936 with respect to building regulations by section 71 (c) of that Act.

(10) Any reference in this section to plans deposited in accordance with building regulations shall be construed as including a reference to any sections, specifications and written particulars deposited with the plans in accordance with the regulations or this section.

Provision of means of escape from fire in certain buildings.

46.—(1) In its application to a district section 60 of the Act of 1936 shall have effect as if—

- (a) in subsection (1), for the words “ twenty feet ” there were substituted the words “ eighteen feet ”; and
- (b) for subsection (4) there were substituted the following subsection:—

“ (4) This section applies to any building which exceeds one storey in height and in which the floor of any upper storey is more than eighteen feet above the surface of the street or ground on any side of the building and which, in whole or in part, is used—

- (a) as a flat or flats or tenement dwellings; or

(b) as an inn, hotel, boarding-house, hospital, nursing home, boarding school, children's home, aged persons' home or similar institution or as a restaurant, shop, store, office or warehouse".

PART V
—cont.

(2) (a) The local authority may by notice require the person having control of a building to which the said section 60, as amended by subsection (1) of this section, applies (other than a house used, in whole or in part, as a flat or flats or tenement dwellings) to keep unobstructed such passages and gangways as are specified in the notice and, if he fails to do so, he shall be liable to a fine not exceeding £20.

(b) A person served with a notice under this subsection may appeal to a magistrates' court on any of the following grounds:—

- (i) that the requirement is not justified by the terms of this subsection;
- (ii) that there has been some informality, defect or error in, or in connection with, the notice;
- (iii) that the requirement of the notice is unreasonable in character or extent or is unnecessary.

(3) The said section 60 of the Act of 1936, as having effect in accordance with this section, shall not apply to any building in respect of which a licence under the Cinematograph Acts 1909 and 1952 is for the time being in force.

47.—(1) The power of a local authority to make byelaws under section 75 of the Public Health Act 1961 relating to pleasure fairs shall extend to the making of byelaws for preventing or reducing danger from, or risk of fire in or to, caravans, stands, stalls and structures used or intended to be used for the purposes of, or in connection with, any fair or circus.

Byelaws for prevention of fire at fairs and circuses.
1961 c. 64.

(2) Without prejudice to the generality of the foregoing provisions of this section, any byelaws made under section 75 of the said Act of 1961 as extended by this section may—

(a) prescribe the space to be kept free between the bodies of any two such caravans used or intended to be used for sleeping accommodation and between the body of any such caravan so used or intended to be used and such stand, stall or structure;

(b) prohibit or restrict the storage and use of flammable gases other than for domestic purposes;

and such byelaws shall in all circumstances be deemed to be properly made for the preservation of public safety:

Provided that no byelaws so made shall apply to any caravan, stand, stall or structure erected for the purposes of, or in connection with, a fair or circus provided by The Scout Association

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—cont.

or The Girl Guides Association or by members of an organisation established by either of such associations in pursuance of their charter.

Fire
precautions on
demolition of
buildings.
1961 c. 64.

48. In its application to a district section 29 of the Public Health Act 1961 (which relates to the demolition of buildings) shall have effect as if, in subsection (5) thereof, there were inserted the following paragraph:—

“(bb) to take such precautions as the local authority may reasonably require with regard to the burning on the site of materials or rubbish or of any structure”.

Byelaws as to
burning of
refuse.

49.—(1) A local authority may make byelaws prescribing the times and the days of the week during which trade refuse may be set fire to or burned in any building site, yard or garden.

(2) The confirming authority in respect of byelaws made under this section shall be the Secretary of State.

Safety of
stands.

50.—(1) As from the appointed day in any district, no person shall commence to erect in the district a stand to which this section applies unless he has given notice to the local authority of his intention to do so, accompanied by a plan and section of the stand and such further particulars as the local authority may reasonably require, and the local authority have approved the erection of the stand under this section.

(2) Within five weeks from the receipt of such a notice from any person the local authority may give him notice that they approve the erection of the stand, but only subject to—

(a) such modifications of the plan, section and particulars submitted to them; and

(b) compliance with such requirements as to maintenance and otherwise;

as may be specified in the notice, being modifications and requirements which appear to the local authority to be necessary for securing the stability of the stand and protection against fire, and generally for securing the safety of persons to be accommodated thereon.

(3) If a notice given under subsection (1) of this section states the period for which it is proposed that the stand will remain erected, the local authority shall have regard to that statement in considering what modifications and requirements are to be specified in a notice under subsection (2) of this section, but may, by the last-mentioned notice, require that the stand shall be pulled down and removed within such time from the expiration of that period as may be specified in the notice, or such further time as the local authority may allow.

(4) The local authority may at any time within the said five weeks give notice that they approve the erection of the stand in

accordance with the plan, section and particulars submitted to them; and, if within the said five weeks the local authority have not given notice under subsection (2) of this section, they shall be deemed for the purposes of this section to have so approved the erection of the stand.

(5) Any person aggrieved by a requirement or other decision of the local authority under this section may appeal to a magistrates' court.

(6) If any person—

- (a) commences to erect a stand to which this section applies in contravention of subsection (1) of this section; or
- (b) erects such a stand otherwise than in accordance with a plan, section and particulars submitted to the local authority under the said subsection (1), or, if notice has been given of any modifications under subsection (2) of this section, otherwise than in accordance with the said plan, section and particulars as modified by the notice; or
- (c) being the owner or occupier of such a stand erected otherwise than as aforesaid, allows 20 or more persons to be on the stand at any one time; or
- (d) being the owner or occupier of such a stand, fails to comply with any requirement imposed by a notice under subsection (2) or subsection (3) of this section;

he shall be liable to a fine not exceeding £100:

Provided that nothing in this subsection shall apply to a stand the erection whereof was commenced before the appointed day.

(7) For the purposes of section 287 (1) (a) of the Act of 1936 as applied by this Act, the provisions of this section shall be provisions which it is the duty of the local authority to enforce.

(8) The provisions of this section shall not apply to a stand erected by the proprietor of a travelling circus, roundabout or amusement fair for the purposes of his business as such.

(9) This section applies to a stand, including any structure which is not a building or extension of a building to which building regulations are applicable, for the purpose of affording seating or standing accommodation for 20 or more persons at any one time.

PART V
—cont.

Consultation
by local
authorities
with fire
authority.
1928 c. 32.

1960 c. 62.

1961 c. 64.

51.—(1) Subject to the provisions of this section, a local authority shall consult with the Council as the fire authority—

- (a) before granting, with or without conditions, a petroleum spirit licence under the Petroleum (Consolidation) Act 1928;
- (b) before exercising their functions under sections 59 or 60 of the Act of 1936 (which require a local authority to reject building plans for certain public and other buildings unless satisfactory exits, entrances and passages are provided and to reject building plans for certain high buildings unless means of escape from fire are provided);
- (c) before issuing a site licence, with or without conditions to which this paragraph applies or altering any such conditions attached to a site licence, or providing a site for caravans under the Caravan Sites and Control of Development Act 1960;
- (d) before giving notice under section 94 (Means of access to buildings) of the Act of 1956;
- (e) before passing any plans of a type referred to in section 41 (Underground parking places) of this Act;
- (f) before approving under subsection (4) of section 44 (Oil-burning equipment) of this Act the installation or placing of equipment which does not comply with the appropriate specification contained in byelaws made under that section;
- (g) before approving particulars of the matters referred to in subsection (1) (a) and (b) of section 45 (Fire precautions in certain large buildings) of this Act;
- (h) before making byelaws under section 47 (Byelaws for prevention of fire at fairs and circuses) of this Act;
- (i) before including in a notice served under section 29 of the Public Health Act 1961 relating to the demolition of any building a requirement under subsection (5) of that section as extended by section 48 (Fire precautions on demolition of buildings) of this Act;
- (j) before making byelaws under section 49 (Byelaws as to burning of refuse) of this Act;
- (k) before approving the erection of any stand under section 50 (Safety of stands) of this Act.

(2) Subsection (1) (c) of this section applies to conditions for securing that proper measures are taken for preventing and detecting the outbreak of fire and that adequate means of fire fighting are provided and maintained, and consultation

in respect of the matters specified in that paragraph shall only be required in relation to such measures for preventing and detecting the outbreak of fire and such means of fire fighting.

PART V
—cont.

(3) Nothing in this section shall affect the validity of any exercise by a local authority of their functions under any enactment without compliance with this section.

52.—(1) This section applies to—

Parts of
buildings
used for
storage of
flammable
substances.

(a) any building of which part (hereafter in this section referred to as “the storage part of the building”) is used, or intended to be used, for the storage for the purposes of sale or trade of any substance to which this section applies and part is used, or intended to be used, as a habitable room or a place in which any person works, if the part used, or intended to be used, as a habitable room or a place in which a person works communicates directly or indirectly with, or is adjacent to, or constructed at a higher level than, the storage part of the building;

(b) any substance which is highly flammable:

Provided that this section shall not apply to any building in which no substance to which this section applies is stored other than—

- (i) one or more of the substances to which sections 1 and 2 of the Petroleum (Consolidation) Act 1928 or the 1928 c. 32. Celluloid and Cinematograph Film Act 1922 apply; or 1922 c. 35.
- (ii) any substance which does not, when tested by a method approved by the Secretary of State, give off a flammable vapour at a temperature of less than 80 degrees Fahrenheit (27 degrees Centigrade) and which is stored in securely closed metal containers in good condition and containing not more than 5 gallons each; or
- (iii) any substance which does not, when tested by a method approved by the Secretary of State, give off a flammable vapour at a temperature of less than 80 degrees Fahrenheit (27 degrees Centigrade) and which is stored in separate glass or glazed earthenware vessels securely stoppered and the aggregate amount of all such substances stored in such manner would not, if the whole contents were in bulk, exceed 25 gallons.

(2) If the Council are of the opinion that the storage for the purposes of sale or trade of any substances to which this section applies in any part of a building in the county to which this section applies is—

- (a) in such quantity as to be likely to prove a source of danger to any person inhabiting or using any part of

PART V
—cont.

the building as a habitable room or as a place where any person works; or

(b) in such manner as to be liable to cause fire or explosion;

they may by notice require the occupier of any part of the building to provide or fit (as the case may be), within such reasonable period as may be specified in the notice—

- (i) adequate means of giving warning, in the case of fire, to persons occupying the building and for extinguishing fire and safeguards to prevent the spread of fire to or from the storage part of the building;
- (ii) means of ready escape in case of fire from the storage part of the building and any other part of the building, being a part comprising a habitable room or a place in which any person works if that other part communicates directly or indirectly with, or is adjacent to, or constructed at a higher level than, the storage part of the building;
- (iii) notices in or on the storage part of the building indicating the existence of danger from fire.

(3) The occupier of any building who—

- (a) by reason of a restriction affecting his interest in the building, is unable to execute works for the purpose of complying with a notice given by the Council under subsection (2) of this section; or
- (b) considers that the owner of the building, or any other person having an interest therein, should contribute towards the cost of the execution of works as aforesaid, and is unable to agree with the owner or such other person as to whether such a contribution should be made or as to the amount thereof;

may apply to the county court for an order to enable the execution of such works as may be necessary for the purpose of complying with the notice, or (as the case may be) to direct the owner of the building, or any other person who appears to the court to have an interest therein, to contribute towards the cost of such works as aforesaid such an amount as appears to the court, in all the circumstances of the case, to be fair and reasonable and the court may on such application make an order in respect of either or both of the matters aforesaid accordingly.

(4) Upon compliance with a notice under subsection (2) of this section the Council shall forthwith issue to the person to whom the notice was given a certificate of such compliance.

(5) (a) If, after a certificate of compliance with a notice under subsection (2) of this section has been granted by the Council—

- (i) any material extension or material structural alteration of the building to which the certificate relates is intended to be made; or
- (ii) it is intended materially to increase the storage in the said building of any substance to which this section applies;

the occupier of any part of the building shall, not less than twenty-one days before any such extension or alteration is made or any such storage is increased, give notice of such intention to the Council who may serve a further notice varying any requirement made under subsection (2) of this section in respect of that building.

(b) Upon compliance being made with such varied requirements the Council shall amend the certificate or grant a new certificate in respect of the building, but if anything required to be provided in accordance with a further notice served under this subsection is not provided within such reasonable time as may be specified in the notice, the Council may cancel the certificate previously granted in respect of the building.

(6) All means of escape, fire alarms and means of extinguishing fire provided or fitted (as the case may be) under the requirements of subsection (2) (b) (i) and (ii) of this section shall be properly maintained and kept free from obstruction.

(7) For the purposes of section 287 (1) (a) of the Act of 1936 as applied by this Act, the provisions of this section shall be provisions which it is the duty of the Council to enforce.

(8) (a) An authorised officer of the Council may, in respect of any premises which he has entered in pursuance of the powers conferred by the said section 287, purchase and test samples of any substance stored on such premises for the purposes of sale or trade in order to ascertain whether or not such substance is a substance to which this section applies.

(b) The result of any test of a sample taken by an authorised officer of the Council by virtue of this section shall not be admissible as evidence in any legal proceedings under this section, including an appeal under subsection (9) of this section, unless the following requirements have been complied with, that is to say, the said officer shall forthwith after taking the sample notify the occupier of the building of his intention to have it tested and shall there and then divide the sample into three parts, shall cause each part to be placed in a suitable container, which shall be sealed up and marked, and shall—

- (i) deliver one part to the occupier of the building;
- (ii) retain one part for future comparison; and

PART V
—cont.

(iii) if he thinks fit to have a test made, submit one part to be tested.

(9) (a) Any person aggrieved by a requirement of the Council under subsection (2) of this section, or by a variation of a requirement under subsection (5) of this section, may appeal to a magistrates' court on any or all of the following grounds:—

- (i) that the requirement or variation is not justified by the terms of this section;
- (ii) that the requirement or variation is unreasonable in character or extent;
- (iii) that the period specified in the notice is not reasonably sufficient for the purpose of complying with the requirements in the notice.

(b) Any person aggrieved by the refusal of the Council to grant or amend a certificate under this section, or by the cancellation of a certificate under subsection (5) of this section, may appeal to a magistrates' court.

(10) If any person contravenes the provisions of this section he shall be liable to a fine not exceeding £50 and to a daily fine not exceeding £5.

(11) In this section “building” where used in relation to the storage of substances therein includes the curtilage of the building, and “habitable room” includes a room or place to which the public resort.

(12) Nothing in this section shall apply to premises which are subject to the Factories Act 1961, the Offices, Shops and Railway Premises Act 1963, the Licensing Act 1964 or the Private Places of Entertainment (Licensing) Act 1967, or regulations made under those Acts, or to premises to which section 73 of the Mines and Quarries Act 1954 applies.

Prescription
of signs to
be used on
certain
buildings.

53.—(1) The Council may, in relation to any substance to which this section applies—

- (a) prescribe standard uniform signs or symbols or warning notices in a form approved by the Secretary of State clearly indicating the nature of the substance and the existence of danger from fire;
- (b) by notice require the occupier of any part of a building used for the manufacture or storage of the substance to affix, within such reasonable time as is specified in the notice, and thereafter to keep fixed in a conspicuous position or positions in or on the part of the building used for such manufacture or storage, the appropriate sign, symbol or notice.

(2) This section applies to any substance likely to involve special hazard to persons engaged in operations for fire-fighting purposes.

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—cont.

(3) If any person fails to comply with the requirements of the Council under this section he shall be liable to a fine not exceeding £50 and to a daily fine not exceeding £5.

(4) In this section “fire-fighting purposes” has the same meaning as in the Fire Services Act 1947.

1947 c. 41.

54.—(1) This section applies to apparatus consisting of luminous tube signs designed to work at a voltage normally exceeding 650 volts, or other equipment so designed, and of the transformers required to raise the voltage so as to operate the signs or equipment, not being apparatus which is inside a building and is attended while in operation.

Firemen's
switches for
luminous
tube signs.

(2) As from the coming into operation of this section, apparatus to which this section applies in the county shall be provided with a cut-off switch on the low-voltage side of the transformer, and the switch shall be so placed, and so coloured or otherwise marked, as to satisfy such reasonable requirements as the Council may impose to secure that it shall be readily accessible to, and recognisable by, firemen.

(3) Not less than fourteen days before work is begun to install apparatus to which this section applies, the consumer shall give notice to the Council showing where the cut-off switch is to be placed and how it is to be coloured or otherwise marked.

(4) Where apparatus to which this section applies has been installed before the date of the coming into operation of this section, the consumer shall, not less than fourteen days before that date, give notice to the Council—

(a) in the case of apparatus already provided with a cut-off switch on the low-voltage side of the transformer, showing where the switch is placed and how it is coloured or otherwise marked;

(b) in the case of apparatus not already provided with such a cut-off switch as aforesaid, showing where the switch is to be placed and how it is to be coloured or otherwise marked.

(5) Where notice has been given to the Council as required by subsection (3) or subsection (4) of this section, the proposed or (as the case may be) actual position, colouring or marking of the switch shall be deemed to satisfy the requirements of the Council

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—cont.

unless, within ten days from the date of the service of the notice, if the notice is served under subsection (3) of this section, or within twenty-one days from the date of the service of the notice, if the notice is served under subsection (4) of this section, the Council have served on the consumer a counter-notice stating that their requirements are not satisfied.

(6) A cut-off switch which complies with the regulations of the Institution of Electrical Engineers shall for the purposes of this section be deemed to satisfy the requirements of the Council.

(7) A person aggrieved by a counter-notice served by the Council under subsection (5) of this section may appeal to a magistrates' court and the court, if it allows the appeal, shall order the cancellation of the counter-notice.

(8) The owner or the occupier of any premises where apparatus is installed which does not comply with subsection (2) of this section shall be guilty of an offence.

(9) A person who fails to give notice as required by subsection (3) or subsection (4) of this section shall be guilty of an offence.

(10) A person guilty of an offence under this section shall be liable to a fine not exceeding £50, and, in the case of an offence under subsection (8) of this section, to a daily fine not exceeding £2.

1947 c. 54.

(11) The provisions of this section shall not affect the requirements of the Electricity Supply Regulations 1937 or any regulations that may be made under section 60 of the Electricity Act 1947.

1968 c. 54.

(12) This section shall not apply to apparatus installed on or in premises, or any part of premises, in respect of which a licence under the Cinematograph Acts 1909 and 1952 or the Theatres Act 1968 is for the time being in force:

Provided that where any luminous tube sign to which, but for this subsection, this section would apply is proposed to be fitted on or in any such premises, the owner or occupier thereof shall, before such apparatus is fitted, give notice under subsection (3) of this section to the Council informing them of the position in which it is proposed to place the cut-off switch.

(13) This section shall come into operation in the county at the expiration of a period of two months beginning with the date on which this Act is passed.

(14) (a) The Council shall, as soon as may be after the passing of this Act, cause public notice to be given of the effect of the foregoing provisions of this section by advertisement in two or more newspapers circulating in the county, and otherwise in such manner as the Council think fit.

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—cont.

(b) In any proceedings it shall be presumed, unless the contrary is proved, that the provisions of this subsection have been complied with.

55.—(1) A fire officer authorised in writing by the chief fire officer of the Council may, on giving not less than forty-eight hours' notice to the secretary of a club in the county registered under the Licensing Act 1964 and on production of his authority, enter and inspect, as regards any matter affecting fire risks, the premises occupied by the club at any reasonable time on such day as may be specified in the notice; but the chief fire officer shall not so authorise a fire officer unless in his opinion special reasons exist making it necessary that the premises should be inspected for the proper discharge of functions in relation to any matter affecting fire risks.

Fire precautions in registered clubs.
1964 c. 26.

(2) Any person obstructing a fire officer in the exercise of the power conferred by this section shall be liable to a fine not exceeding £20.

56.—(1) The Council may arrange for—

- (a) the publication of information on questions relating to fire services, fire fighting and precautions for avoiding the occurrence of fires in the county;
- (b) the delivery of lectures and addresses and the holding of discussions on such questions; and
- (c) the display of pictures, cinematograph films or models or the holding of exhibitions relating to such questions.

Instructions, lectures, etc., on questions relating to fire services, etc.

(2) The Council may prepare, or join in, or contribute to the cost of, the preparation of, pictures, films, models or exhibitions relating to such questions to be displayed or held whether within or outside the county.

57.—(1) No person shall within the county dispose of or deposit any container (including a container attached to a vehicle or machine) which has been used for the storage of a flammable, explosive or poisonous substance and is no longer used for that purpose unless he takes all such steps as may be reasonably necessary to prevent danger from the container to any person or property.

Disposal of dangerous containers.

PART V
—cont.

(2) If any person contravenes the provisions of subsection (1) of this section he shall be liable to a fine not exceeding £50, and the local authority may take such steps as may be reasonably necessary to prevent danger from the container and may recover from that person the expenses incurred by them in so doing.

1933 c. 25.

(3) In this section “poisonous substance” means a substance specified in the Poisons List for the time being in force under section 17 of the Pharmacy and Poisons Act 1933.

Rescue
apparatus.

58.—(1) An authority may, on any land which is for the time being owned by them or under their control, or with the consent of the occupier on any other land, provide and maintain apparatus for use in the rescue of persons in danger of drowning or persons who have been injured or otherwise incapacitated while engaged in mountaineering or rock-climbing or in any other activity involving danger to life or limb, together with structures for the storage or safe keeping of any such apparatus.

(2) An authority may contribute to the expenses incurred by any other body or person in providing in their area any apparatus or structure as aforesaid.

(3) An authority may combine with, or contribute to the expenses of, any other authority in exercising their powers under this section.

(4) In this section “authority” means the Council, a local authority or a parish council and “area” means in relation to the Council, the county, in relation to a local authority, their district and in relation to a parish council, their parish.

Protection of
dangerous
excavations.

59.—(1) Where there is on any land in their district a pond, well, mineshaft, quarry or other excavation which, by reason of its being unfenced or inadequately fenced or otherwise inadequately protected, constitutes a danger to children or other persons, a local authority may pay, or contribute to the payment of, any expenses incurred in the execution, by any body or person who has the right to do so, of any works of repair, protection or enclosure which may be required to obviate the danger:

1954 c. 70.

Provided that, in the case of an excavation in respect of which any person may, under section 144 of the Act of 1959 or section 151 of the Mines and Quarries Act 1954, be required to execute works to obviate the danger, the local authority shall

only pay, or contribute to the payment of, the expenses of executing such works where they are satisfied that it would be unreasonable in the circumstances of the case for such body or person to be required to bear the expense, or the whole of the expense (as the case may be), of executing such works.

(2) If in the case of any such pond, well, mineshaft, quarry or other excavation as aforesaid on any land in their district—

- (a) the local authority are unable, after making reasonable inquiry, to ascertain the name and address of the owner or occupier of the land; or
- (b) the local authority have, by notice given to the owner or occupier of the land, requested the execution of such works of repair, protection or enclosure as they may consider necessary to obviate the danger, and, despite an offer made by the local authority to pay or contribute to the payment of any expenses incurred by the owner or occupier in the execution of such works, the works are not executed within such reasonable time thereafter as may be necessary for the purpose;

the local authority may, subject to the provisions of subsection (3) of this section, themselves execute such works.

(3) (a) Where, in a case referred to in subsection (2) (b) of this section, the local authority propose themselves to execute works on any land they shall, before carrying the proposal into effect, serve notice on the owner or occupier of the land specifying—

- (i) the place where the local authority propose to execute such works;
- (ii) the nature of the works proposed;
- (iii) the effect of paragraphs (b) and (c) of this subsection; and
- (iv) the period, which shall not be less than twenty-eight days, within which notice of objection to the proposal may be sent in writing to the local authority.

(b) The local authority shall consider any notice of objection sent to them by the owner or occupier of the land within the period so specified and give notice of their decision on the objection to the person by whom it was made.

(c) If that person is aggrieved by the decision of the local authority he may, within twenty-one days after receiving notice thereof, appeal to a magistrates' court, and the court shall have power to make such order with respect to the execution of the

PART V
—cont.

works by the local authority as it considers reasonable but in so doing shall have regard, as between an owner and occupier, to the terms and conditions (whether contractual or statutory) of any tenancy.

(4) If in pursuance of subsection (2) of this section, or of an order of a court made under subsection (3) (c) of this section, the local authority themselves execute works of repair, protection or enclosure on any land they shall, unless otherwise agreed in writing between the local authority and the owner or occupier of the land and unless otherwise provided in any such order of the court, maintain those works.

(5) The Council may pay such contributions as they think fit towards any expenses incurred by any person (including a local authority) in executing works in relation to any such pond, well, mineshaft, quarry or other excavation in the county for the purpose of obviating danger to persons.

Securing of
unoccupied
houses under
Act
of 1957.

60.—(1) Where a local authority have under section 16 of the Act of 1957 accepted an undertaking that a house will not be used for human habitation, or where the local authority have—

(a) by a closing order made under sections 17, 18, 26 or 35 of the Act of 1957, ordered any house or building or any part thereof to be closed; or

(b) by a clearance order under section 44 of the Act of 1957, ordered any building or any part thereof to be vacated and, in such a case, it appears to the local authority that the building or the part thereof (as the case may be) will not be, or is unlikely to be, demolished within six weeks from the date when, in pursuance of the order, the premises are vacated;

they may, if the premises are not effectively secured so as to prevent the entry into the premises when unoccupied of any person other than a person authorised by the owner or the local authority, after giving to the owner not less than forty-eight hours' notice of their intention to do so, themselves do such things in relation to the house or building or part thereof as will so secure the premises against entry.

(2) Nothing in this section shall prejudice the powers of a local authority to take steps to deal with any dangerous, ruinous or dilapidated house or building under any enactment.

(3) In this section—

“house” has the same meaning as in the Act of 1957;

“owner” includes any person deemed to be the person having control of the house for the purposes of Part II of that Act.

PART VI

PUBLIC HEALTH AND WELFARE

61.—(1) Any expenses adjudged to be payable to the local authority consequent upon the exercise of their powers under section 23 (1) or section 44 (3) of the Act of 1957 (which relate to the demolition of buildings pursuant to demolition orders or clearance orders made under that Act) shall, until recovered, be a charge on the premises in respect of which the expenses were incurred and on all estates and interests therein. Expenses of executing demolition orders.

(2) The local authority shall for the purpose of enforcing a charge under this section have all the powers and remedies under the Law of Property Act 1925 and otherwise of mortgagees by deed having powers of sale and lease of accepting surrenders of leases and of appointing a receiver. 1925 c. 20.

62. In its application to a district the Act of 1957 shall have effect as if— Amendment of Act of 1957 relating to closing orders.

(1) in section 27 (which makes provision for the determination of a closing order made under that Act)—

(a) at the end of subsection (2) there were inserted the following proviso:—

“ Provided that where the local authority are satisfied that part of any premises as respects which a closing order has been made has been rendered fit for human habitation, they may determine the order so far as it relates to that part ”;

(b) in subsection (3) (b) after the word “ determine ” there were inserted the words “ in whole or in part ”;

(c) at the end of subsection (5) there were inserted the following words:—

“ or by the owner of part of any premises where such a closing order is in force in respect of that part ”;

(2) at the end of section 28 (which makes provision for the revocation of such a closing order and the substitution of a demolition order) there were inserted the following proviso:—

“ Provided that a demolition order shall not be made by virtue of this section in relation to any premises in respect of which a closing order has been determined so far as it relates to a part of those premises ”.

PART VI
—cont.

Supply of
water to
premises
where supply
cut off.

63.—(1) Where an occupied house in a district has ceased to be supplied with water sufficient for the domestic purposes of the occupants by reason of the absence or defective state of a supply pipe (not being a supply pipe which is laid in a highway), or the cutting off of the supply of water through that pipe, or the absence or defective state of any fittings, the local authority may, without prejudice to any action or proceedings which they may take under any other enactment, repair or renew the pipe or execute such works and provide or repair such fittings and do such other things (including the making of any payment) as they may consider necessary to secure that the supply of water to the house is restored, and may recover the expenses reasonably incurred by them in so doing from the owner of the house.

(2) In any proceedings for the recovery of expenses under the foregoing subsection the court may inquire whether the whole or any part of the expenses should, instead of being borne by the person from whom they are sought to be recovered, be borne by the occupier of the premises in respect of which they were incurred, and the court may make such order as appears to it to be just in the circumstances of the case with respect to the person (being either the person from whom the expenses are sought to be recovered or such an occupier as aforesaid) by whom the expenses are to be borne or as to the apportionment between any such persons of their liability to bear the expenses:

Provided that the court shall not under this subsection order the expenses or any part thereof to be borne by any person other than the defendant in the proceedings, unless the court is satisfied that that other person, at the instance of the defendant, has had due notice of the proceedings and an opportunity of being heard.

(3) The functions of the local authority under the foregoing provisions of this section may be exercised by the medical officer of health or the public health inspector of the district.

(4) The local authority may if they think fit themselves bear the whole or any part of any expenses recoverable by the local authority under this section.

(5) (a) The powers conferred by this section shall not be exercisable in relation to any house without the consent of the water undertakers concerned (which consent shall not be unreasonably withheld), and in giving their consent the water undertakers—

(i) may attach thereto such reasonable conditions as they think fit, including, where the supply of water to an occupied house has been cut off by them in exercise of their statutory powers, conditions to secure that the

supply to that house is not restored under this section unless the local authority pay to the water undertakers any sum due to them in respect of the supply of water to that house and any expenses reasonably incurred by them in cutting off the supply; and

- (ii) may, without prejudice to any action or proceedings which they may take under any other enactment, elect to carry out on behalf of the local authority any repair, renewal or other works proposed by the local authority, in which case the expenses reasonably incurred by the water undertakers in so doing shall be repaid to them by the local authority.

(b) Any difference arising between any water undertakers and a local authority under this subsection (other than a difference as to the meaning or construction thereof) shall be determined by arbitration.

(6) In this section words and expressions to which meanings are assigned in section 1 of Schedule 3 to the Water Act 1945 1945 c. 42. have the same respective meanings.

64.—(1) The local authority may by notice require a contractor engaged in or upon any building operations in their district, or in or upon the construction or reconstruction of any works therein, within such time as may be specified in the notice—

Sanitary conveniences for persons employed on construction work.

- (a) to provide sufficient and satisfactory sanitary conveniences for the workpeople employed thereon; and
- (b) where the workpeople employed thereon comprise both men and women, to provide as aforesaid for men and women separately;

if it is reasonably practicable so to do.

(2) This section shall not apply to building operations or works—

- (a) to which section 127 of the Factories Act 1961 applies; 1961 c. 34.
or
- (b) at any mine or quarry within the meaning of the Mines and Quarries Act 1954. 1954 c. 70.

(3) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under this section as they apply in relation to the notices mentioned in subsection (1) of that section.

(4) This section shall not apply to the following local authorities:—

Ebbw Vale Urban District Council;
Risca Urban District Council.

PART VI
—cont.Repair of
walls, etc.

65.—(1) If it appears to a local authority that any party or boundary wall of any court, courtyard, yard or garden attached to, or forming part of, any house or other premises in their district, or the fence or door of any such court, courtyard, yard or garden—

- (a) has collapsed or been pulled down; or
- (b) is in danger of collapsing; or
- (c) is in such a state of disrepair as to be a source of serious inconvenience to the occupants of the premises or to the public;

the local authority may by notice require the owner or occupier of the premises, or, in the case of a party wall, the owners or occupiers of both premises, to carry out such works (including the rebuilding, reinstatement, removal or repair of any such wall, fence or door) as are reasonably necessary:

1957 c. 59.

Provided that, in the case of any property in respect of which there is in force a notice served by the National Coal Board under section 3 of the Coal-Mining (Subsidence) Act 1957, no works shall be required by notice served under this section in relation to any wall, fence or door comprised in such property other than emergency works (as defined in section 1 (5) of the said Act) or other works specified in the notice served under the said section 3.

(2) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under this section as they apply in relation to the notices mentioned in subsection (1) of that section.

Power to order
alteration
of domestic
chimneys.

66.—(1) If a magistrates' court is satisfied, upon a complaint by a local authority, that any smoke, gas or vapour from a chimney, flue or pipe of a building or structure forming part of, or within the curtilage of, a house in their district is prejudicial to health or a nuisance, the court may make an order requiring the owner of the chimney, flue or pipe, within such time as may be specified in the order—

- (a) to cause it to be raised to a height so specified; or
- (b) to cause such other means for remedying the cause of complaint to be adopted as the court thinks fit:

Provided that the court shall not make an order under this section unless it is satisfied that the work to be done in pursuance of the order need not involve an expenditure exceeding £100.

(2) If any person fails to comply with an order made under this section he shall be liable to a fine not exceeding £50.

PART VI
—cont.

Model
aircraft.
1960 c. 68.

67. Section 1 of the Noise Abatement Act 1960 (which applies the statutory nuisance provisions of the Act of 1936 to noise or vibration) shall have effect in the county as if the exemption in subsection (7) of that section of noise or vibration caused by aircraft did not apply to model aircraft, other than such aircraft operated in, or flown from, any part of a pleasure ground set apart by a local authority for the flying of model aircraft in accordance with byelaws made by that authority.

68. In its application to a district section 76 (3) of the Act of 1936 (which prohibits interference with dustbins and refuse tips) shall have effect as if, in paragraph (b) thereof, after the words “in any place provided” there were inserted the words “or used”.

69.—(1) Where plans of a building have been deposited with a local authority in pursuance of building regulations the local authority may, notwithstanding anything in section 64 of the Act of 1936, reject the plans if the local authority are not satisfied that they show that—

- (a) the method of storage and collection of refuse together with the related facilities to be provided are adequate; and
- (b) adequate means of access from a highway to the place of storage of the refuse so as to facilitate the removal of refuse to the local authority refuse vehicles will be provided:

Provided that this section shall not apply to a private dwelling-house not forming part of a building comprising more than one dwelling-house within the same curtilage.

(2) If the local authority reject the plans under the authority of this section the notice given in pursuance of section 64 (2) of the Act of 1936 shall specify that the plans have been so rejected.

(3) Any question arising under this section between the local authority and the person by or on whose behalf plans are deposited as to whether the method of storage and collection of refuse with the related facilities or the means of access shown on the plans are adequate may, on the application of that person, be determined by a magistrates’ court:

Provided that no such application shall be entertained unless it is made before the proposed building has been substantially commenced.

PART VI
—cont.Restriction
on use of
dustbins.

70.—(1) As from the 1st April, 1971, no person shall deposit in a dustbin or other receptacle for removal by, or on behalf of, a local authority (whether as house refuse or trade refuse) any corrosive substances or flammable liquids (whether in containers or not) whereby injury to the health of the employees of the local authority or their agents may be caused, unless he takes such steps as may be reasonably necessary to prevent danger from the container.

(2) As from the 1st April, 1971, no person shall deposit in a dustbin or other receptacle for the removal of house refuse by, or on behalf of, the local authority any refuse of a liquid or partially liquid character unless in a closed container.

(3) If any person contravenes the provisions of this section, he shall be liable to a fine not exceeding £20.

(4) (a) The Council shall before 28th February, 1971, cause public notice to be given of the general effect of the foregoing provisions of this section by advertisement in two or more local newspapers circulating in the county and otherwise in such manner as the Council think fit.

(b) In any proceedings it shall be presumed, unless the contrary is proved, that the provisions of this subsection have been complied with.

Power to
provide
dustbins
for trade
refuse.

71.—(1) A local authority may, as respects any premises in their district, provide and maintain such number of dustbins or other similar receptacles for the reception of trade refuse as they may consider necessary.

(2) Section 75 (3) of the Act of 1936 (which enables a local authority to make charges in respect of dustbins provided by them) shall apply in relation to a dustbin or other receptacle provided under subsection (1) of this section.

Tattooists.

72.—(1) As from the appointed day in any district, no premises in that district shall be used for the purpose of tattooing, or offering to tattoo, persons in the course of business unless the premises so used, and the person carrying on the business, are registered by the local authority.

(2) Subject to the provisions of this section, where a person makes an application in that behalf and furnishes the local authority with particulars of his name and residence and of any

premises to be registered, the local authority shall register that person and those premises and issue to him a certificate of registration.

PART VI
—cont.

(3) The local authority may make byelaws for the purpose of securing—

- (a) the cleanliness of premises registered under this section and of the instruments, towels, materials and equipment used therein; and
- (b) the cleanliness of persons working in such premises in regard both to themselves and their clothing.

(4) If any person uses any premises for the purpose of tattooing, or offering to tattoo, persons in the course of business in contravention of subsection (1) of this section, he shall be liable to a fine not exceeding £100.

(5) If any person contravenes any byelaw made under subsection (3) of this section, he shall be liable to a fine not exceeding £10 and, if he or the premises used by him, are registered under this section, the court by which he is convicted may, instead of, or in addition to, imposing a fine, order the suspension or cancellation of his registration and of the registration of any premises used by him in which the offence was committed.

(6) A court ordering the suspension or cancellation of registration under subsection (5) of this section may suspend the operation of the order until the fourteen days prescribed by section 84 (1) of the Magistrates' Courts Act 1952 for giving notice of appeal 1952 c. 55. to quarter sessions have expired:

Provided that if notice of appeal is given within the said fourteen days, an order made under this subsection shall be suspended until the appeal is finally determined or abandoned.

(7) Where the registration of any person is cancelled by order of a court under subsection (5) of this section—

- (a) he shall within seven days deliver up to the local authority the certificate of registration and, if he fails to do so, he shall be liable to a fine not exceeding £5 and a daily fine not exceeding £2; and
- (b) he shall not again be registered by the local authority under this section except in pursuance of a further order of a magistrates' court made on his application.

(8) A person registered under this section shall keep a copy of the said byelaws and of his certificate of registration displayed in the premises in respect of which he is registered, and if he fails to do so he shall be liable to a fine not exceeding £5 and a daily fine not exceeding £2.

PART VI
—cont.

(9) The confirming authority in respect of byelaws made under this section shall be the Secretary of State, and in relation thereto section 250 of the Act of 1933 (which prescribes the procedure for making and confirming byelaws) shall have effect as if, in subsection (6) thereof, after the word “confirm”, where it secondly occurs, there were inserted the words “or confirm with modifications”.

(10) For the purposes of section 287 (1) (a) of the Act of 1936 as applied by this Act, the provisions of this section shall be provisions which it is the duty of the local authority to enforce.

(11) This section does not apply to premises used for the purpose of performing tattoos for medical reasons by a fully registered medical practitioner, or by a person working under his direction, and not used for the purpose of performing or offering to perform other tattoos.

PART VII
FINANCEPower to
borrow.

73.—(1) The Council may borrow—

- (a) such sums as may be necessary for any of the purposes of this Act;
- (b) without the consent of any sanctioning authority, such sums as may be necessary for paying the costs, charges and expenses of this Act.

(2) A local authority may borrow such sums as may be necessary for any of the purposes of this Act.

(3) Subject to the provisions of this section, Part IX of the Act of 1933 shall have effect as if money borrowed under this section were borrowed under that Part.

(4) The Council shall repay sums borrowed under subsection (1) (b) of this section within five years from the date of borrowing.

(5) It shall not be lawful to exercise the powers of borrowing conferred by subsection (1) (a) or subsection (2) of this section except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act 1946.

1946 c. 58.

Power to
raise money
by bills.

74.—(1) In addition to the methods of borrowing prescribed by the Act of 1933, the Council may raise money—

- (i) for any purpose for which the Council are authorised to borrow;
- (ii) in anticipation of the receipt of revenues, for any purpose for which the revenues of the Council may properly be applied;

by means of bills (to be called “Monmouthshire County Bills”, in this section referred to collectively as “bills” and

separately as "a bill") subject to, and in accordance with, the following provisions:—

PART VII
—cont.

- (a) A bill shall be in the form prescribed by regulations made under this section and shall be for the payment of the sum named therein in the manner and at the date therein mentioned, being a date not more than twelve months from the date of the bill:
- (b) A bill shall entitle the holder thereof to payment at maturity of the sum expressed in the bill to be payable:
- (c) Bills may be offered for purchase (whether by tender or otherwise) in such manner and on such conditions as the Council may determine:
- (d) Bills shall be issued under the authority of a resolution passed by the Council, and shall bear the signature of the treasurer to the Council or of some other person authorised by the Council:
- (e) The Council may make regulations providing for—
 - (i) the preparation, form, mode of issue, payment and cancellation of bills;
 - (ii) the issue of new bills in lieu of bills defaced, lost or destroyed;
 - (iii) the prevention, by the use of counterfoils or of a special description of paper or otherwise, of fraud in relation to bills;
 - (iv) the giving of a proper discharge on the payment of a bill; and
 - (v) the amendment or revocation of any regulations previously made or deemed to have been made under this paragraph:
- (f) The amount of money received in respect of a bill shall be deemed to be principal money raised by means of the bill, and the difference between the amount payable in respect of a bill and the amount received in respect thereof shall be deemed to be interest on the principal money so raised:
- (g) The aggregate amount payable on bills current at any one time shall not (except by the amount payable on bills issued shortly before any other bills fall due in order to pay off the last-mentioned bills) exceed—
 - (i) the sum of £1,400,000; or
 - (ii) one-fifth of the amount of the estimated gross rate income of the county during the then current financial year;

whichever is the greater:
- (h) Subject to the provisions of the last foregoing paragraph, the Council may renew a bill at maturity:

PART VII
—cont.

(i) The Council may borrow for the purpose of repaying the principal money raised by bills but, except as aforesaid, any power of the Council to borrow shall be suspended to the extent of the amount which has been raised for capital purposes by the issue of bills.

(2) (a) The Council may, at the request of a local authority to which this subsection applies, raise money by means of Monmouthshire County Bills in accordance with the foregoing provisions of this section and where they do so shall lend such money to the local authority—

- (i) for any purpose for which the local authority are authorised to borrow; or
- (ii) in anticipation of the receipt of revenues for any purpose for which the revenues of the local authority may properly be applied:

Provided that the aggregate amount payable on bills issued for the purpose of lending to a local authority under this subsection and current at any one time shall not (except by the amount payable on bills issued shortly before any other such bills fall due in order to pay off the last-mentioned bills) exceed one-fifth of the amount of so much of the gross rate income of that local authority for the then current financial year as is retained by the authority to meet liabilities falling to be discharged by the authority.

(b) The aggregate amount payable on bills issued for the purpose of lending to a local authority under this subsection current at any one time shall not be taken into account in calculating the aggregate amount referred to in subsection (1) (g) of this section.

(c) Any money lent to a local authority by the Council under this subsection shall be repaid to the Council by the local authority on or before the respective dates on which the bills by which the money was raised fall due for repayment.

(d) This subsection applies to a local authority whose gross rate income in the financial year current at the date of the exercise of the powers of this subsection is not less than £3,000,000.

(3) In this section—

“gross rate income” means the gross rate income as used in the determination of the product of a rate of one penny in the pound under rules made pursuant to section 113 of the General Rate Act 1967;

“revenues” has the same meaning as in section 218 of the Act of 1933;

“signature” includes a facsimile of a signature by whatever process reproduced.

1967 c. 9.

Power to
raise money
by bearer
bonds.

75. In addition to any other method by which the Council may raise any money which they are authorised to borrow, they may,

with the consent of the Treasury and subject to such conditions as the Treasury may impose, raise the money by means of the issue of bearer bonds or other securities to bearer.

PART VII
—cont.

76.—(1) Any method by which the Council are empowered by any enactment to raise any money which they are authorised to borrow shall, notwithstanding anything in that enactment, be deemed to include the raising of money by that method outside the United Kingdom or in any foreign currency. Power to raise money abroad.

(2) The powers conferred by the foregoing subsection shall be exercised only with the consent of the Treasury and subject to such conditions as the Treasury may impose.

(3) Every sum borrowed by way of mortgage by the Council in a transaction authorised by this section shall be repaid in accordance with the provisions of section 212 of the Act of 1933 or in accordance with the provisions of any consolidated loans fund scheme established by the Council under section 153 (Consolidated loans fund) of the Act of 1956, or under section 55 of the Local Government Act 1958. 1958 c. 55

(4) The enactments empowering the Council to raise money shall have effect in relation to a transaction authorised by this section for the raising of money in a foreign currency as if—

- (a) for any reference in those enactments to sterling, there were substituted a reference to the foreign currency; and
- (b) for any reference therein to a sum expressed in terms of sterling there were substituted a reference to the sum expressed in terms of the foreign currency (adjusted, where necessary, to produce an amount which the Council consider appropriate having regard to all the circumstances of the transaction).

77. Section 155 (Power to issue bonds) and section 168 (Power to local authorities to issue bonds) of, and Schedule 4 to, the Act of 1956 shall have effect subject to the following amendments in the said schedule:— Amendment of power to issue bonds.

(1) For paragraph 1 thereof there shall be substituted the following paragraph:—

“ 1.—(a) Subject to the provisions of sub-paragraph (b) of this paragraph, bonds issued under this Act shall—

- (i) bear interest at such rate as the issuing authority may determine at the time of the issue of the bonds;
- (ii) be issued in denominations of five pounds or multiples of five pounds;

PART VII
—cont.

(iii) be issued for such periods as the issuing authority may determine not being less than one year.

(b) For the purposes of sub-paragraph (a) of this paragraph—

(i) bonds issued to, and held continuously by, building societies, and persons and bodies of such other classes as the issuing authority may, with the consent of the Treasury, from time to time determine, shall not be deemed to have been issued for a period less than one year by reason only of the fact that the holder of such a bond has the right to claim premature repayment under a stress clause;

(ii) a bond shall not be deemed to have been issued for a period less than one year by reason only of the fact that it is issued on the condition that it may, at the discretion of the issuing authority, be repaid upon the death of the holder, or in any other case for the purpose of relieving hardship to the holder.

(c) Notwithstanding anything in the said sub-paragraph (a) the period for which a bond is issued may be extended for such further period as the issuing authority and the persons entitled to repayment of the money raised by the issue of the bond may agree, and during that further period shall bear interest at such rate as may be so agreed.”.

(2) In paragraph 2 (a) thereof the words “ and at such rates of interest ” shall be omitted.

(3) In the form of certificate in paragraph 5 (5) thereof the words “ repayable at par as follows ” were substituted for the words “ repayable at par on the 19 , at ”.

Extension of
power to
invest super-
annuation
fund.
1961 c. 62.

78.—(1) In its application to the investment by the Council under section 21 (3) of the Act of 1937 of any moneys forming part of, but which are not for the time being required to meet payments out of, the superannuation fund, the Trustee Investments Act 1961 shall have effect as if—

(a) at the end of Part III (Wider-Range Investments) of Schedule 1 to that Act there were inserted the following paragraph:—

“ 4. In any securities issued in any of the scheduled territories within the meaning of section 1 of the

Exchange Control Act 1947, or in Canada or in the United States of America, or in any of the following countries, namely, Austria, Belgium, Denmark, France, Holland, Italy, Japan, Luxembourg, Norway, Portugal, Spain, Sweden, Switzerland and Western Germany ”; PART VII
—cont.
1947 c. 14.

(b) in Part IV (Supplemental) of the said schedule—

(i) in paragraph 1, after the word “ schedule ”, there were inserted the words “ other than those mentioned in paragraph 4 of the said Part III ”; and

(ii) after paragraph 2 there were inserted the following paragraph:—

“ 2A. The securities mentioned in paragraph 4 of Part III of this schedule do not include shares or debenture stock not fully paid up (except shares or debenture stock which, by the terms of issue, are required to be fully paid up within nine months of the date of issue) ”.

(2) Notwithstanding anything in the said Act of 1961, the Council may invest any moneys referred to in subsection (1) of this section in any manner specified in Part III of Schedule 1 to that Act, as having effect in accordance with this section, and may also from time to time vary any such investments:

Provided that no such moneys as aforesaid shall be so invested at any time when the value of all the investments made in the manner specified in Part III of the said schedule as so having effect equals or exceeds three-quarters of the total value of the superannuation fund.

79.—(1) Subject to the provisions of this section, the powers exercisable by the Council under the Trustee Investments Act 1961, as having effect in accordance with the last foregoing section, to invest any property belonging to the wider-range part of the superannuation fund shall include power to invest such property in such manner as they think fit (and whether alone or in association with any other person) in— Investment
of super-
annuation
fund in
land and
unit trusts.
1961 c. 62.

(a) the acquisition, development or management of land situated in the United Kingdom and used, or to be used, for residential, commercial or industrial purposes; and

(b) units or other shares of investment of any unit trust scheme;

but Part IV of Schedule 1 to the Trustee Investments Act 1961 shall not apply to any investment made under this subsection.

PART VII
—cont.

(2) For the purposes of the foregoing provisions of this section an investment in the units of a unit trust scheme or in participation certificates or in any form of participation under any trust or scheme established in the United Kingdom or elsewhere having the effect of enabling persons to participate in the profits and income arising from the acquisition, holding, management or disposal of such securities or of any land or interest in land shall be regarded as an investment in the securities in question or in such land or interest in land.

(3) So long as the value of the investments of property for the time being made under the powers conferred by the foregoing subsection equals or exceeds one-sixth of the total value of the wider-range part of the superannuation fund no further investment may be made thereunder.

(4) For the purposes of the last foregoing subsection, the value of any investment of property belonging to the wider-range part of the superannuation fund shall be deemed to be the value of the investment at the time at which it was made.

1961 c. 62.

(5) Subsections (2) to (7) of section 6 of the Trustee Investments Act 1961 (which requires trustees to consider advice in choosing investments) shall apply in relation to the exercise of the powers of investment conferred by subsection (1) of this section as they apply in relation to the exercise by the Council of the powers conferred by section 1 of that Act to invest any property belonging to the wider-range part of the superannuation fund in a manner specified in Part III of Schedule 1 to that Act.

(6) The provisions of this section shall have effect notwithstanding anything in section 21 (3) of the Act of 1937.

(7) In this section “property” and “the wider-range part” in relation to the superannuation fund have the same meanings as they have for the purposes of the said Act of 1961.

Expenses of
investment
of super-
annuation
fund.

80. Costs, charges and expenses incurred by the Council in investing moneys forming part of the superannuation fund maintained by them, or otherwise in relation thereto, may be paid by the Council out of that fund.

Loans for
erection, etc.,
of buildings.

81.—(1) The Council may advance money to—

- (a) any person for the purpose of enabling or assisting him to purchase or lease any land; or
- (b) the owner, purchaser or lessee of any land for the purpose of enabling or assisting him to build or carry out works on such land, or to extend or improve any existing building thereon:

Provided that any such advance shall not exceed nine-tenths of the amount which in the opinion of the Council will be the market value of the interest of the borrower in the land after the purpose of the loan has been effected.

PART VII
—cont.

(2) For the purposes of this section, the provisions of subsections (2), (4) and (5) of section 3 of the Local Authorities (Land) Act 1963, regulating the form and conditions of advances made by a local authority for the erection of buildings on land sold or let by them, shall apply and have effect as if, for references therein to an advance made under the said section 3, there were substituted references to an advance made under subsection (1) of this section, and subject to any other necessary modifications. 1963 c. 29.

(3) Any person acting on behalf of the Council and authorised in writing by the clerk shall have power at all reasonable times to enter any land, building or works in respect of which an advance is made under this section for the purpose of ascertaining whether the conditions subject to which the advance is made are being complied with.

(4) The borrower may with the permission of the Council (which shall not be unreasonably withheld) at any time transfer his interest in the land in respect of which the advance was made, but any such transfer shall be made subject to the terms of the mortgage securing the advance.

(5) In this section—

“lessee” includes a person to whom the Council have agreed to grant a lease, and “lease” shall be construed accordingly; and

“owner” means the person (other than a mortgagee not in possession) entitled, either with or without the consent of any other person, to dispose of the fee simple of the land.

82. Section 12 of the Prices and Incomes Act 1968 (which enables a local authority to increase the rent payable to the authority for houses let on a weekly or other periodical tenancy without the tenancy being terminated) shall apply to all houses within the meaning of the Housing (Financial Provisions) Act 1958 of the Council as if, in subsection (1)—
Notice of alteration of rents without notice to quit.
1968 c. 42.
1958 c. 42.

(a) the words “on a weekly or other periodical tenancy” were omitted;

(b) after the word “increased” there were inserted the words “or reduced”; and

(c) after the word “increase” there were inserted the words “or reduction”;

and as if, in subsection (4), the definition of “local authority” included the Council, for the definition of “local authority houses” there were substituted the words “local authority

PART VII
—cont.

houses ' are houses of the local authority ", and after the word " increase " there were inserted the words " or reduction ".

False
statements to
obtain
tenancies.

83. If a person, for the purposes of obtaining for himself or another person the tenancy or occupation of a house belonging to, or at the disposal of, the Council, knowingly or recklessly makes, or permits to be made, to the Council or to any committee of the Council or member of the Council or employee of the Council a statement which is false in a material particular about his, or that other person's, needs or means, he shall be liable to a fine not exceeding £100.

Application
to local
authorities
of provisions
of Part VII.

84.—(1) (a) With the consent of the Secretary of State the provisions of this Part of this Act mentioned in paragraph (b) of this subsection shall apply to a local authority maintaining a superannuation fund and, for that purpose, those provisions shall have effect as if, for references therein to the Council, there were substituted references to such local authority and to their district, and subject to any other necessary modifications.

(b) The provisions in this subsection before referred to are—

Section 78 (Extension of power to invest superannuation fund);

Section 79 (Investment of superannuation fund in land and unit trusts);

Section 80 (Expenses of investment of superannuation fund).

(2) (a) The provisions of this Part of this Act mentioned in paragraph (b) of this subsection shall apply to a local authority and, for that purpose, shall have effect as if for references therein to the Council there were substituted references to the local authority, and subject to any other necessary modifications.

(b) The provisions in this subsection before referred to are—

Section 82 (Notice of alteration of rents without notice to quit);

Section 83 (False statements to obtain tenancies).

Saving for
exchange
control.
1947 c. 14.

85. Nothing in this Part of this Act shall exempt the Council from the provisions of the Exchange Control Act 1947.

PART VIII

SUPERANNUATION

Interpretation
for Part VIII.

86. In this Part of this Act, unless otherwise expressly enacted or the subject or context otherwise requires, words and expressions to which meanings are assigned by the Act of 1937 have the same respective meanings, and—

" contributor " means a contributor to the superannuation fund as respects whom the Council are the employing authority;

“ death grant ” and “ transfer value ” have, in relation to a contributor, the meanings assigned to them respectively by the Regulations of 1954;

“ the new superannuation provisions ” means this section and sections 87 to 89 of this Act;

“ the principal Acts ” means the Local Government Superannuation Acts 1937 to 1953;

“ the Regulations of 1954 ” means the Local Government Superannuation (Benefits) Regulations 1954;

“ return of contributions ” in relation to a person who has ceased to be a contributor includes any sum paid to, or in respect of, him by way of interest on the amount of the contributions returned to him;

“ superannuation benefit ” includes any benefit which is or may be granted in pursuance of the principal Acts or the regulations made thereunder or in pursuance of any local Act or scheme or local Act scheme.

PART VIII
—cont.

87.—(1) The new superannuation provisions shall come into force on 1st January, 1971.

Operation of
new super-
annuation
provisions.

(2) Without prejudice to the provisions of section 89 (Transfers of employment), section 90 (Application of new superannuation provisions to other employing authorities) and section 91 (Application of new superannuation provisions to local authorities) of this Act, the provisions of the principal Acts and the regulations made thereunder shall apply and have effect in relation to a person who is a contributor on or after the date of the coming into force of the new superannuation provisions subject to the extensions, modifications and applications of the said Acts and regulations contained in the new superannuation provisions.

88.—(1) Where, after the coming into force of the new superannuation provisions, the employment of a contributor who has attained the age of fifty-five years and completed ten years' service is terminated in the interests of efficiency before he has attained the age of sixty-five years, he shall be entitled to superannuation benefits calculated by reference to the service which he was entitled to reckon at the date when he ceased to hold his employment:

Benefits in
certain cases
of premature
retirement.

Provided that this subsection shall not apply to a contributor if, not later than one month after ceasing to hold his employment, he notifies the Council in writing that he does not wish this subsection to apply to him.

(2) Where, after the coming into force of the new superannuation provisions, a contributor who has attained the age of fifty-five years and completed twenty-five years' service but has not attained pensionable age terminates his employment at his own request, then superannuation benefits calculated by reference to

PART VIII
—cont.

the service which he was entitled to reckon at the date when he ceased to hold his employment shall be payable in place of any entitlement to a return of contributions under section 10 of the Act of 1937:

Provided that—

- (i) where a person has become entitled to a superannuation benefit by virtue of this subsection, he may, by notice given to the Council in writing at any time before any payment on account of such benefit has been made to him, elect that this subsection, and any rights to which he is entitled thereunder, shall cease to apply in relation to him as from the date on which such notice is given;
- (ii) unless the Council otherwise determine on compassionate grounds, no benefit shall be paid to a person by virtue of this subsection before the date on which he attains pensionable age.

(3) Where a person who has become entitled to a superannuation benefit by virtue of subsection (2) of this section dies before any payment on account of such benefit has been made to him, as from the date of his death the like benefits shall be payable in respect of him as would have been paid if he had died on the last day of his employment as a contributor.

(4) For the avoidance of doubt it is hereby declared that where a person is for the time being entitled to any benefit by virtue of subsection (2) of this section, that benefit shall be deemed to be a superannuation benefit for the purpose of the definition of “service” in section 40 (1) of the Act of 1937, whether or not any payment has been made to him on account thereof.

1953 c. 25. (5) For the purposes of section 16 of the Local Government Superannuation Act 1953, and of any rules made thereunder, a person entitled to a superannuation benefit by virtue of subsection (2) of this section shall be deemed to cease to hold his employment on the day immediately preceding the day on which that benefit first becomes payable to him, and a superannuation benefit as aforesaid shall be deemed to be such a superannuation allowance or benefit as is referred to in subsection (1) of the said section 16.

(6) In this section “pensionable age” in relation to any person means the earliest age at which, if he were to remain a contributor without a break of service, he would, on ceasing to hold his employment, become entitled to superannuation benefits by reason of having, otherwise than under this section, attained such age and completed such period of service as is prescribed in the principal Acts or the Regulations of 1954, as the case may be.

89.—(1) The Council may, in accordance with the provisions of a scheme made by them for the purposes of this section—

PART VIII
—cont.

(a) as respects any contributor who ceases or has ceased to hold employment under the Council in order to enter an employment (in this paragraph referred to as “ the new employment ”) in relation to which interchange arrangements are not for the time being in force, if that contributor so desires, instead of making any such payment to him from the superannuation fund as is referred to in section 10 of the Act of 1937 (or, where such a payment has been made, if it is repaid to the superannuation fund by the contributor), either—

Transfers of
employment.

(i) make from the superannuation fund in respect of him a payment by way of a transfer value to the body or persons responsible for administering any superannuation scheme in connection with the new employment; or

(ii) subject to such consequential provisions as may be prescribed in the scheme, award to, or in respect of, him superannuation benefits calculated by reference to the service which he was entitled to reckon at the date when he ceased to hold his employment under the Council:

Provided that no benefit shall be paid to a person by virtue of this sub-paragraph before such date as may be prescribed under the scheme; and

(b) as respects any person who enters or has entered into employment with the Council from an employment in relation to which interchange arrangements are not for the time being in force, receive any payment made by, or in respect of, him to the superannuation fund, whether by way of transfer value or otherwise, and shall confer on him by virtue of such payment such rights under the principal Acts, and the regulations made thereunder, as may be prescribed under the said scheme.

(2) A scheme made under this section shall be of no effect unless it has been approved by the Secretary of State, and the Secretary of State may approve any such scheme, either with or without modifications, after consultation with such organisations as are, in his opinion, representative of the interests concerned.

(3) A scheme made under this section may be amended or revoked by a subsequent scheme.

(4) Any body or persons responsible for administering a superannuation scheme in connection with an employment as respects which interchange arrangements are not for the time being in

PART VIII
—cont.

force, may make any amendments or modifications of that superannuation scheme that may be desirable to facilitate the operation of any scheme made by the Council under this section.

(5) Where any provision of the principal Acts or the regulations made thereunder which has effect in relation to a contributor contains a reference to a transfer value, such reference shall be deemed (as may be appropriate) to include a reference to any such payment by way of a transfer value as is referred to in subsection (1) (a) (i) of this section or to such payment by way of a transfer value or otherwise as is referred to in subsection (1) (b) of this section.

1948 c. 33. (6) In this section “interchange arrangements” means any arrangements, whether by virtue of rules made under section 2 of the Superannuation (Miscellaneous Provisions) Act 1948, or by virtue of any other enactment apart from this section, providing for the preservation of superannuation rights following a change of employment.

Application of
new
superannua-
tion provisions
to other
employing
authorities.

90.—(1) An authority to which this section applies may by resolution adopt all or any of the new superannuation provisions as from such date, not being earlier than 1st January, 1971, as may be specified in such resolution, and where any provisions are so adopted they shall apply and have effect in relation to the authority as if—

- (a) any reference therein to a contributor were a reference to a contributor to the superannuation fund as respects whom the authority are the employing authority; and
- (b) any reference to the Council in section 88 (Benefits in certain cases of premature retirement) or subsection (1) (a) and (b) of section 89 (Transfers of employment) of this Act were a reference to the authority.

(2) Where in pursuance of the last foregoing subsection any provisions are adopted by an authority to which this section applies as from a date later than 1st January, 1971, any reference in those provisions to the date of the coming into force of the new superannuation provisions shall be construed in relation to the authority as a reference to such later date.

(3) This section applies to—

- (a) a local authority which do not maintain a superannuation fund under Part I of the Act of 1937;
- (b) any organisation, undertaking or body in respect of which there is for the time being in force an admission agreement with the Council pursuant to section 15 of the Local Government Superannuation Act 1953;
- (c) any other employing authority in relation to which the superannuation fund is the appropriate superannuation fund within the meaning of section 1 (3) (d) of the Act of 1937.

1953 c. 25.

PART VIII
—cont.

Application of
new super-
annuation
provisions to
local
authorities.

91.—(1) Where a local authority, or a combination of local authorities, maintain a superannuation fund under Part I of the Act of 1937, any such local authority may by resolution adopt all or any of the new superannuation provisions, as from such date, not being earlier than 1st January, 1971, as may be specified in such resolution, and where any provisions are so adopted they shall apply and have effect in relation to that local authority as if—

- (a) any reference therein to the Council were a reference to that local authority ;
- (b) any reference therein to a contributor were a reference to a contributor to the superannuation fund maintained by that local authority, or combination of local authorities, under Part I of the Act of 1937 as respects whom that local authority are the employing authority; and
- (c) any reference therein to the superannuation fund were a reference to the superannuation fund maintained by that local authority, or combination of local authorities, under Part I of the Act of 1937.

(2) If any such local authority as is referred to in subsection (1) of this section adopts all or any of the new superannuation provisions, any other employing authority in relation to which that local authority, or combination of local authorities, are the appropriate administering authority may by resolution adopt all or any of the new superannuation provisions as from such date as may be specified in such resolution, and, where any provisions are so adopted, they shall apply and have effect in relation to the employing authority as if—

- (a) any reference therein to a contributor were a reference to a contributor to the superannuation fund maintained by the local authority, or combination of local authorities, as respects whom the authority are the employing authority; and
- (b) any reference to the Council in section 88 (Benefits in certain cases of premature retirement) or subsection (1) (a) and (b) of section 89 (Transfers of employment) of this Act were a reference to the employing authority.

92.—(1) Subject to the provisions of subsection (4) of this section, subsection (2) of this section applies to employees—

Exclusion
of certain
remuneration
and service
for super-
annuation
purposes.

- (a) who are contributory employees for the purposes of the Local Government Superannuation Acts 1937 to 1953; or
- (b) who are teachers employed in reckonable service within the meaning of the Teachers' Superannuation Act 1967; or

1967 c. 12.

PART VIII
—cont.

- (c) who are firemen participating in the Firemen's Pension Scheme; or
- (d) who, by virtue of the provisions of rule 3 of the Superannuation (Policy and Local Government Schemes) Interchange Rules 1948 and 1955, are not subject to the provisions of the Local Government Superannuation Acts 1937 to 1953;

and who are employed whole-time by the Council, a local authority, a magistrates' courts' committee, a probation committee, the managers or governors of a voluntary school, a local valuation panel or any voluntary organisation, undertakers or other body approved by the Secretary of State and who participate in the benefits of the superannuation fund.

(2) The salary, wages, fees and other payments paid or made (whether before or after the passing of this Act) to an employee to whom this subsection applies in respect of any part-time employment (not being employment the duties of which may be performed during the hours which such employee is normally required to devote to his ordinary whole-time employment) by the Council, or any other authority or body the employees of which participate in the benefits of the superannuation fund—

- (a) as an instructor or other employee performing duties at, or for the purposes of, an evening institute or for the purposes of evening classes; or
- (b) as a warden of, or other employee performing duties at, or for the purposes of, a youth centre; or
- (c) as a civil defence instructor; or
- (d) in any other capacity for the performance of duties which are not duties which he may be called upon to perform in his ordinary whole-time employment;

shall not be remuneration within the meaning of the Local Government Superannuation Acts 1937 to 1953, or of any other enactment affecting the superannuation fund, and the service of any such contributory employee in any such part-time employment shall not be reckoned as service for any of the purposes of those Acts.

(3) Where, before the passing of this Act, any person to whom subsection (2) of this section applies has paid any contribution or contributions to the superannuation fund which would not have been so paid if this section had been in force when such contribution or contributions were made, the Council shall repay to such person a sum equal to the amount of such contribution or contributions, together with compound interest thereon calculated to the date of repayment at the rate of 3 per centum per annum with half-yearly rests.

(4) Subsection (2) of this section shall not apply to any such person as is referred to in subsection (3) of this section unless, within six months after the passing of this Act, he gives notice in writing to the Council that the said subsection (2) is to apply to him, whereupon that subsection shall apply to him as if this Act had come into force on the date of the receipt by the Council of such notice.

93.—(1) If a contributor is dismissed or resigns, or otherwise ceases to hold employment, in consequence of an offence of a fraudulent character or grave misconduct, the Council may transfer from the superannuation fund to the county fund of the Council an amount not exceeding the whole, or any part, of any contributions not returned to him or paid to his wife or family under section 10 (4) of the Act of 1937, or the amount of any loss suffered by the Council in consequence of the employee's offence, misconduct, dismissal or resignation, whichever is the less.

Transfer of certain sums from superannuation fund.

(2) If a contributory employee of an employing authority whose employees participate in the benefits of the superannuation fund is dismissed, resigns, or otherwise ceases to hold employment, in consequence of an offence of a fraudulent character or grave misconduct and by reason thereof the employing authority have suffered direct financial loss, the Council shall, on demand from the employing authority, pay to them out of the superannuation fund an amount equal to so much of the employee's contributions to the fund as the employing authority have not directed to be returned to the employee or paid to his wife or family, or the amount of such loss suffered by the employing authority in consequence of his offence, misconduct, dismissal or resignation, whichever is the less:

Provided that—

- (a) where a payment in lieu of contributions falls to be made in respect of the employee under the National Insurance Act 1965, the Council shall not under this subsection be required to pay to the employing authority so much of the employee's contributions as amounts to one-half of such payment in lieu of contributions; 1965 c. 51.
- (b) the Council shall not be required to pay to the employing authority so much of the employee's contributions as relates to any period of previous service unless the employing authority have directed that all rights enjoyed by, or in respect of, him with respect to that period of previous service, being rights under Part I of the Act of 1937 or under the Local Government Superannuation Act 1953, or any regulations made thereunder, shall be forfeited. 1953 c. 25.

PART VIII
—*cont.*

Gratuities
to non-
teaching staff
in voluntary
schools.

1953 c. 25.

Recovery of
sums paid to
officers, etc.

94. For the purposes of section 18 of the Local Government Superannuation Act 1953, in its application to the Council, a person employed in a voluntary school in the county, otherwise than as a teacher, shall be deemed to be employed by the Council, and the Council may grant to, or in respect of, any such person a gratuity in accordance with the provisions of the said section 18.

95.—(1) Where the Council have paid in advance to any employee the amount of his emoluments and such employee dies before the expiration of the period in respect of which such payment is made, the Council shall not be required to demand the return of such portion thereof, not exceeding £25, as the Council may determine.

(2) In any case where the Council exercise the powers of the last foregoing subsection, they shall transfer from the county fund to the superannuation fund the amount which, but for the exercise of those powers, would have been returned to the superannuation fund.

(3) In this section—

“employee” means any officer or servant of the Council or any officer or servant whose salary or wages is or are payable by the Council, and includes any former officer or servant who is in receipt of a superannuation allowance or benefit payable out of the superannuation fund;

“emoluments” means in relation to an officer or servant his salary or wages (as the case may be) and, in relation to a former officer or servant in receipt of a superannuation allowance or benefit, the amount of that allowance or benefit.

Application to
certain
authorities of
provisions of
Part VIII.

96.—(1) The provisions of this Part of this Act mentioned in subsection (2) of this section shall apply to a local authority and to a joint committee of local authorities established under section 2 of the Act of 1937 and, for that purpose, those provisions shall have effect as if, for references therein to the Council, there were substituted, in the case of a local authority, references to the local authority and, in the case of any such joint committee, references to that committee, and subject in both cases to any other necessary modifications.

(2) The provisions hereinbefore referred to are—

Section 92 (Exclusion of certain remuneration and service for superannuation purposes);

Section 93 (Transfer of certain sums from superannuation fund); and

Section 95 (Recovery of sums paid to officers, etc.).

PART IX

MISCELLANEOUS

97.—(1) The Council may provide services and facilities for the processing of data for any person by computer or by any other equipment which the Council may possess, and the Council may make such charges as may be agreed for the provision of those services and facilities. As to use of computer equipment.

(2) Information obtained by any employee of the Council in the course of the provision of such services or facilities shall not, without the consent of the person from whom it was obtained, be disclosed by that employee except for the purpose of performing his duties in relation to those services and facilities or in such cases as may be required by law.

98.—(1) The Council may make and retain microfilm recordings of documents of the Council. Microfilming of documents.

(2) Notwithstanding anything contained in any enactment, the Council may destroy any documents of the Council, other than minute books, of which they have made microfilm recordings and have made provision for the retention of such recordings:

Provided that—

- (a) the Council shall not under this section destroy records deposited with them under the Public Records Act 1958, 1958 c. 51. or acquired or accepted by them under section 2 of the Local Government (Records) Act 1962, or documents recording any matter by reference to colour depicted thereon;
- (b) the Council shall afford to the public the same rights of access to a microfilm recording made under this section as would have been available in respect of the document so recorded if this section had not been enacted.

(3) An enlargement of a microfilm recording of a document made in pursuance of this section shall be deemed for all purposes to be a copy of that document.

(4) Notwithstanding anything contained in any enactment or any rule of law, an enlargement of a microfilm recording of a document which has been destroyed in pursuance of this section shall be admissible in evidence, for any purpose for which the document would have been admissible in any proceedings in any court in England or Wales, if the clerk certifies that—

- (a) the document has been destroyed; and
- (b) a microfilm recording of the document has been made; and
- (c) the enlargement is an enlargement of that microfilm recording.

PART IX
—cont.

(5) The Council, in consultation with such persons as appear to them to be the appropriate persons to consult with on matters relating to the destruction or retention of documents, may prepare and agree a code of practice containing guidance and recommendations as to the principles which should, in their opinion, govern the exercise by any person of the powers to destroy documents conferred by subsection (2) of this section, including guidance and recommendations as to the considerations which should govern the retention of certain documents, or classes or examples of documents, on the grounds of the value which the documents have, or may reasonably be expected to have in the future, for administrative or historical purposes or for the purposes of sociological or other research.

(6) In this section, unless the context otherwise requires—

- (a) “document” means the whole or part of a register, book, record, letter, map, plan, drawing, photograph or other document and includes a notice, licence, certificate, scheme or order made, passed or granted by the Council or any committee of the Council;
- (b) references to documents of the Council are references to documents belonging to, or permanently in the possession of, the Council; and
- (c) “microfilm recording” means a reproduction of a document on film or other material which is a product of photography or any process akin to photography and is in general beyond legibility with the naked eye.

Damage by
ineradicable
substances.
1914 c. 58.

99. In its application to the county section 14 of the Criminal Justice Administration Act 1914 shall have effect as if the expression “damage” included the making of any mark or inscription by means of an ineradicable substance.

Increase of
fines.

100.—(1) The provisions of the Act of 1956 specified in column (1) of Schedule 1 to this Act shall have effect as if the maximum fine which may be imposed on summary conviction of an offence specified in that enactment were a fine not exceeding the amount specified in column (3) of that schedule instead of a fine of, or not exceeding, the amount specified in column (2) of that schedule.

(2) To give effect to the provisions of Schedule 1 to this Act relating to the imposition of daily fines the enactments in the Act of 1956 hereinafter mentioned shall be amended as follows:—

- (a) in section 33 (Erection of structures at street corners), in subsection (8) (a) the words “for each day on which the failure continues” shall be omitted and the proviso to subsection (8) shall be omitted;

- (b) in section 35 (Application of building line to walls etc.), in subsection (4) (a) the words “ for each day on which the failure continues ” shall be omitted and the proviso to subsection (4) shall be omitted;
- (c) in section 49 (Maintenance of footways etc.), in subsection (3) the words “ and to a daily penalty not exceeding twenty shillings ” shall be omitted;
- (d) in section 114 (Registration of hawkers of food and their premises), in subsection (2) the words “ and to a daily penalty not exceeding twenty shillings ” shall be omitted;
- (e) in section 119 (Hairdressers and barbers), in subsection (5) the words “ and to a daily penalty not exceeding five pounds ” shall be omitted;
- (f) in section 122 (Penalties), the words “ and in either case to a daily penalty not exceeding five pounds ” shall be omitted;
- (g) in section 131 (Sale of food and articles on verges etc.), in subsection (2), for the words “ a penalty not exceeding forty shillings ”, there shall be substituted the words “ a fine not exceeding ten pounds and to a daily fine (as defined in the Monmouthshire County Council Act 1970) not exceeding two pounds ”.

101. The authority of the Council given by virtue of section 11 of the Finance Act 1961 to the bringing by any constable of proceedings, or any particular proceedings, for an offence referred to in that section may be given on their behalf by a duly authorised officer of the Council and proved by the production of a document purporting to be the authority so given and to be signed by the officer giving it.

Institution of proceedings for offences relating to certain excise duties.
1961 c. 36.

102.—(1) The Council may, for the purpose of enabling them to perform any of their functions under—

- (a) any enactment in force at the passing of this Act which authorises the Council to acquire land compulsorily;
- (b) any enactment mentioned in Schedule 2 to this Act; and
- (c) any local enactment in force on the passing of this Act which authorises the Council to serve notice upon the owner or occupier of lands or premises requiring the execution by such owner or occupier of works on such lands or premises, or which authorises the Council to execute works on lands or premises within the county;

require—

- (i) the occupier of, and any person having an interest in, any premises in the county, and any person who either

Power to require information as to ownership of premises.

PART IX
—cont.

directly or indirectly receives rent in respect of such premises, to state in writing the nature of his own interest therein and the name and address of any other person known to him as having an interest in those premises, whether as freeholder, mortgagee, lessee or otherwise, and the name and address of any person known to him to receive either directly or indirectly the rent in respect of those premises; and

- (ii) any person who has sold, or otherwise disposed of, leased or let any premises in the county to state in writing the name and address of the person to whom he has sold, or otherwise disposed of, leased or let those premises.

(2) If any person who has been required by the Council in pursuance of this section to give to them any information fails to give that information, or knowingly makes any misstatement in respect thereof, he shall be liable to a fine not exceeding £50.

(3) For the purposes of this section, “interest” includes any legal estate or interest in the premises or in any rentcharge issuing out of those premises.

(4) The provisions of any of the enactments referred to in subsection (1) of this section which contain power to require information as to the ownership of premises shall cease to apply to the Council in so far as they relate to the same subject-matter as this section.

Power to
use ladders,
etc., for entry
or inspection.

103.—(1) Any power conferred on an officer of the Council by or under any enactment to enter upon and inspect any building or works in course of construction shall include a power to use, free of expense, for the purpose of the entry or inspection, any ladders, scaffolding and plant in or about the building or works.

(2) If the builder of, or contractor for, any building or works or any person employed by him in or about any building or works—

- (a) refuses to give to such an officer all reasonable assistance in the exercise of the powers conferred by this section; or
(b) otherwise obstructs such an officer in the exercise of those powers;

he shall be liable to a fine not exceeding £20.

104. As from the appointed day in any district, section 65 of the Towns Improvement Clauses Act 1847 (as having effect in accordance with the provisions of section 194 (Renumbering of houses and buildings) of the Act of 1956) shall have effect in its application to the local authority as if, after the words “ with such numbers as the commissioners approve of ”, there were inserted the words “ and in such positions as to be easily visible from the street ”, and as if, after the words “ a number approved of by the commissioners ”, there were inserted the words “ and in such position as to be easily visible from the street ”.

105.—(1) In this section—

Disposal of
lost and
uncollected
property.

“ lost property ” means any property coming into the custody of the Council after being left on or in any premises occupied by the Council to which the public have access; and

“ uncollected property ” means any property deposited in any cloakroom or parcels’ store provided by the Council for the use of the public in which there is exhibited a notice containing a statement of the effect of sub-sections (2) and (3) of this section.

(2) Where any lost or uncollected property is contained in a package, bag or other receptacle, the Council may cause such receptacle to be opened and the contents examined, if they deem it necessary to do so, for the purpose either of identifying and tracing the owner of the property or of ascertaining the nature of its contents.

(3) If, within the period of three months from the date on which it came into the custody of the Council, any lost or uncollected property is not proved to the reasonable satisfaction of the Council to belong to any claimant, it shall upon the expiration of that period vest in the Council:

Provided that any lost or uncollected property which is of a perishable nature, and any lost property the custody of which involves unreasonable expense or inconvenience, may, notwithstanding that it has not vested in the Council under this section, be disposed of at such time and in such manner as the Council may think fit, and, if it is sold, the proceeds of sale shall vest in the Council at the expiration of the period of three months from the date on which the property came into their custody.

(4) Where any lost property becomes vested in the Council in pursuance of this section, the Council may, if they think fit, deliver to the person, whether an employee of the Council or not, who placed the lost property in the custody of the Council, the whole or any part of such property or of the estimated value thereof in cash.

PART IX
—cont.

(5) In the case of any uncollected property which is placed in the custody of the Council on express terms inconsistent with the rights of the Council under this section, this section shall have effect subject to those terms.

(6) This section shall not apply to any specimen, work of art, book or document coming into the custody of the Council after being left at any museum, art gallery, library, archives or other building of the Council for the purpose of identification or otherwise.

Disposal of
unsuitable
specimens.

106.—(1) The Council may sell, lend, exchange or give or otherwise dispose of, any specimen, work of art, book or document—

(a) vested in them which in the opinion of the Council is not required for exhibition or use in any museum, art gallery, library, archives or other building of the Council; or

(b) coming into the custody of the Council after being left at any museum, art gallery, library, archives or other building of the Council for purpose of identification or otherwise and which has been in the possession of the Council for a period of not less than three months:

Provided that in the case of any object to which paragraph (b) of this subsection applies, the powers of this subsection shall be subject to any express terms on which that object was placed in the custody of the Council.

(2) The Council may make arrangements by way of sale, loan, exchange or gift with any person being the owner of any museum, art gallery, library or archives for the transfer to that person of any specimen, work of art, book or document vested in the Council which in the opinion of the Council is more suitable for exhibition or use in the museum, art gallery, library or archives of that person than in a museum, art gallery, library, archives or other building of the Council.

(3) Where any object has become vested in the Council by virtue of a gift or bequest—

(a) the Council shall, if reasonably practicable, consult with the donor or with the personal representatives or trustees of the donor before exercising the powers of this section; and

(b) the powers conferred by this section shall not, during a period of thirty-five years commencing on the date on which it became vested, be exercisable as respects that object in any manner inconsistent with any condition attached to the gift or bequest, except with the consent of the donor or the personal representatives or trustees of the donor.

PART IX
—cont.

1964 c. 75.

Power to lend
museum
objects for
educational
purposes.

Research into
matters
concerning
social
conditions,
etc.

Power to
provide car
parks for
certain
purposes.

(4) Any moneys received by the Council on the disposal under this section of any object vested in them by virtue of a gift or bequest shall, subject to the terms of any trust affecting the said object where the moneys so received exceed £50, be applied in the purchase of specimens, works of art, books or documents, or paid into the art fund maintained by the Council under section 15 of the Public Libraries and Museums Act 1964.

107. Any specimen, work of art or other object in the possession of the Council or a local authority for the purposes of any museum provided by them may be used by them for educational purposes and circulated to schools, colleges and other educational establishments in the county, or loaned to any such establishment for such period and subject to such conditions as the Council or the local authority may determine:

Provided that this section shall not apply to any specimen, work of art or other object which has been left with the Council or the local authority for the purpose of identification or which is in their possession by virtue of a trust or loan the terms of which are inconsistent with the powers conferred by this section.

108. The Council may undertake investigations and research into matters affecting the county relating to social and economic conditions and the health and welfare of the populace, or any of such matters, and may contribute by grants or otherwise towards the cost of similar investigations and research undertaken by any other body or person.

109.—(1) The Council may provide parking places for vehicles used by members or officers of the Council or other persons using, or having business at, the County Hall and other halls, offices and buildings provided and maintained by the Council for, or in connection with, the discharge of their functions, and may adapt, and use for that purpose any land acquired by them under this section.

(2) For the purposes of this section, the Council may acquire by way of purchase, lease or exchange any land, whether situate within the county or within the county borough of Newport, and may appropriate for those purposes any land belonging to them which is not required for the purpose for which it was acquired.

(3) The power conferred upon the Council by this section shall not be exercised in such a manner—

(a) as to be at variance with a trust subject to which land is held, managed or controlled by the Council without an order of the High Court, or of the Charity Commissioners, or of the Secretary of State, or, where the trust instrument reserves to the donor, or any other person, the power to vary the trust, without the consent of the donor or that other person; or

PART IX
—cont.

Provision of
lectures, etc.,
by certain
local
authorities.
1964 c. 75.

(b) as to contravene a covenant or condition subject to which a gift or lease of land or a building has been accepted by, or granted to, the Council without the consent of the donor, grantor, lessor or other person entitled in law to the benefit of the covenant or condition.

110.—(1) A local authority, not being a library authority within the meaning of the Public Libraries and Museums Act 1964, may—

- (a) provide or contribute towards the provision of meetings, lectures, exhibitions and performances for or in connection with the advancement of art, drama, music or literature;
- (b) provide suitable rooms or other accommodation in which to hold or give any meeting, lecture, exhibition or performance mentioned in paragraph (a) of this subsection;
- (c) let such rooms or accommodation for such purposes and make reasonable charges for admission to any such meeting, lecture, exhibition or performance; and
- (d) provide and sell, or authorise the provision and sale of, programmes of any lectures, exhibitions or performances mentioned in paragraph (a) of this subsection:

1948 c. 26.

Provided that any expenditure incurred by a local authority on the provision of meetings, lectures, exhibitions and performances mentioned in paragraph (a) of this subsection shall be deemed, for the purposes of section 132 (3) of the Local Government Act 1948, to be expenditure incurred by them in the exercise of powers under a statutory provision for the provision by them of entertainments.

(2) Nothing in this section shall be taken to dispense with the consent of a Minister of the Crown to any appropriation, lease or other disposition of any lands of the local authority in any case in which such consent would have been required if this section had not been enacted.

(3) Nothing in this section shall affect the provisions of any enactment by virtue of which a licence is required for the public performance of stage plays or for public music or dancing or other public entertainment of the like kind or a cinematograph exhibition.

Application to
certain
authorities of
provisions of
Part IX.

111.—(1) The provisions of this Part of this Act mentioned in subsection (2) of this section shall apply to a local authority and for that purpose, shall have effect as if, for references therein to the Council and to the county, there were substituted references to the local authority and to their district respectively, and subject to any other necessary modifications.

(2) The provisions hereinbefore referred to are—

PART IX
—cont.

Section 97 (As to use of computer equipment);

Section 98 (Microfilming of documents);

Section 102 (Power to require information as to ownership of premises);

Section 103 (Power to use ladders, etc., for entry or inspection);

Section 105 (Disposal of lost and uncollected property);

Section 109 (Power to provide car parks for certain purposes).

(3) In its application to a local authority the said section 109 shall have effect as if, in subsection (1), for the words “ County Hall ” there were substituted the words “ council offices ”.

(4) (a) Section 106 (Disposal of unsuitable specimens) of this Act shall apply to each of the local authorities mentioned in paragraph (b) of this subsection and, for that purpose, shall have effect as if, for references therein to the Council, there were substituted references to such local authority.

(b) The local authorities referred to in paragraph (a) of this subsection are the following:—

Monmouth Borough Council;

Chepstow Rural District Council.

PART X

GENERAL

112.—(1) Nothing in this Act affects prejudicially any estate, Crown rights, right, power, privilege or exemption of the Crown and, in particular and without prejudice to the generality of the foregoing, nothing in this Act authorises the Council or any local authority to take, use, or in any manner interfere with, any land or hereditaments or any rights of whatsoever description—

(a) belonging to Her Majesty in right of Her Crown and under the management of the Crown Estate Commissioners without the consent in writing of those commissioners on behalf of Her Majesty first had and obtained for that purpose; or

(b) belonging to a government department or held in trust for Her Majesty for the purposes of a government department without the consent in writing of that government department.

PART X
—cont.

1950 c. 39.

(2) Nothing in this section shall prejudice or affect any statutory powers of the Council or any local authority or highway authority to carry out code-regulated works within the meaning of the Public Utilities Street Works Act 1950 in any highway vested in, or maintained by, the Secretary of State.

For
protection of
public utility
undertakers.

113. For the protection of public utility undertakers, the following provisions shall, unless otherwise agreed in writing between the authority and the undertakers concerned, apply and have effect:—

(1) In this section, unless the subject or context otherwise requires—

1882 c. 56.

1878 c. 76.

“apparatus” means mains, pipes or other apparatus, and electric lines and works (as respectively defined in the Electric Lighting Act 1882) and telegraphic lines (as defined in the Telegraph Act 1878), belonging to or maintained by any public utility undertakers, and includes any works constructed for the lodging therein of apparatus;

“the authority” means the Council, a highway authority, a local authority or a parish council, as the case may be;

“in” in a context referring to apparatus includes under, over, across, along or upon;

“position” includes depth;

“undertakers” means public utility undertakers or any of them, as the case may be:

(2) Nothing in the following sections of this Act shall relieve the authority, or any person acting with the consent of the authority, from liability for damage caused by them or him to any apparatus in the exercise of the powers of the said sections, and the said powers shall be so exercised as not to obstruct or render less convenient, so far as is reasonably practicable, the access to any apparatus or operational land:—

Section 17 (Verges, etc., of housing estates);

Section 24 (Oil pipes and manholes in streets);

Section 32 (Temporary stoppage of streets);

Section 33 (Provision of parking places on trunk roads and county roads);

Section 34 (Extension of power to provide public conveniences):

(3) Nothing in section 17 (Verges, etc., of housing estates) shall affect the rights of the undertakers with respect to apparatus (including the placing of apparatus) in any grass verge, garden or space:

Provided that, in exercising such rights the undertakers shall not cause or permit, except in a case of necessity, vehicles to enter upon any such verge or space which is maintained in an ornamental condition or mown, or any garden:

PART X
—cont.

- (4) The powers of section 22 (Enforcement of improvement line) of this Act may be exercised by the authority in relation to any building or structure of the undertakers situated on their operational land with the consent of the undertakers, which consent shall not be unreasonably withheld:
- (5) Notwithstanding the stopping up or diversion temporarily of any street under the powers of section 32 (Temporary stoppage of streets) of this Act, the undertakers, their officers, engineers, workmen and others in their employ, shall be at liberty at all times to enter upon such street with any necessary vehicles and to execute and do all such works and things in, upon or under such street as may be necessary for placing, inspecting, repairing, maintaining, renewing or removing apparatus:
- (6) Nothing in section 52 (Parts of buildings used for storage of flammable substances) of this Act shall apply to any building, or part of a building, by reason only that part of that building is used, or intended to be used, to contain a pressure governor, meter, booster or other apparatus for, or in connection with, the supply of gas:
- (7) (a) When the authority give any notice under subsection (1) of section 60 (Securing of unoccupied houses under Act of 1957) of this Act, they shall at the same time send a copy of the notice to the South Wales Electricity Board;
- (b) Nothing in the said section 60 shall prejudice the right of the undertakers to enter upon any premises in exercise of their statutory functions:

Provided that, without prejudice to any other obligation or liability arising in respect of any entry in exercise of statutory powers, any undertakers exercising such powers of entry in respect of any premises required to be secured under the said section 60 shall ensure that the premises are not left less secure by reason of the entry:

- (8) Any question or difference arising between the authority and the undertakers under this section shall be determined by arbitration.

114.—(1) For the protection of the Western Valleys (Monmouthshire) Sewerage Board (hereafter in this section referred to as “the board”), the provisions of this Act specified

For protection
of the
Western
Valleys
(Monmouth-
shire)
Sewerage
Board.

PART X
—cont.

in subsection (2) of this section shall apply to the board and, for that purpose, shall have effect as if, for references therein to public utility undertakers and to apparatus belonging to, or used or maintained by them, there were substituted reference to the board and to their sewers, including manholes, ventilating shafts, pumps and other apparatus connected with any such sewer.

(2) The provisions in this section before referred to are—

- Subsection (8) of section 22 (Enforcement of improvement line);
- Subsection (4) of section 23 (Restriction on buildings under streets);
- Subsection (5) of section 24 (Oil pipes and manholes in streets); and
- Section 113 (For protection of public utility undertakers), except paragraphs (6) and (7).

Application
of provisions
of Act of 1956.

115. The following provisions of the Act of 1956, so far as the same are applicable in that behalf, shall, with any necessary modifications, extend and apply to the exercise of the powers of this Act in the same manner as if those provisions were re-enacted in this Act, namely:—

- Section 212 (Protection of members and officers from personal liability);
- Section 214 (Breach of conditions of consent);
- Section 217 (Local inquiries);
- Section 220 (Appeals).

Arbitration.

116. In arbitrations under a provision of this Act mentioned in column (1) of the following table the reference shall be to a single arbitrator to be appointed by agreement between the parties, or, in default of agreement, to be appointed by the person mentioned in column (2) of that table on the application of any party after giving notice in writing to the other party or parties:—

(1) Provision of Act	(2) Person appointing arbitrator
Section 28 (Exemption for river authorities and statutory undertakers)	The President of the Institution of Civil Engineers.
Section 63 (Supply of water to premises where supply cut off)	The Secretary of State.
Section 113 (For protection of public utility undertakers)	The President of the Institution of Civil Engineers.

117.—(1) Where an offence under any of the provisions of this Act mentioned in subsection (2) of this section committed by a body corporate is proved to have been committed with the consent or connivance of, or to be attributable to any neglect on the part of, any director, manager, secretary or other similar officer of the body corporate, or any person who was purporting to act in any such capacity, he, as well as the body corporate, shall be guilty of that offence and be liable to be proceeded against and punished accordingly.

PART X
—cont.

Liability of
directors, etc.

(2) The provisions hereinbefore referred to are the following:—

- Section 16 (Parking of heavy commercial vehicles);
- Section 23 (Restriction on buildings under streets);
- Section 29 (Building operations affecting public safety);
- Section 44 (Oil-burning equipment);
- Section 52 (Parts of buildings used for storage of flammable substances);
- Section 54 (Firemen's switches for luminous tube signs);
- Section 72 (Tattooists);
- Section 83 (False statements to obtain tenancies).

(3) In this section "director" in relation to any body corporate established by or under any enactment for the purpose of carrying on, under national ownership, any industry, or part of any industry, or undertaking, being a body corporate whose affairs are managed by its members, means a member of that body.

118. Proceedings in respect of an offence created by or under any provision of this Act, or under any byelaw made under any such provision, shall not, without the written consent of the Attorney-General, be taken by any person other than a party aggrieved or the Council, the highway authority, the local authority, or the parish council (as the case may be) having an interest in the enforcement of the provision or byelaw in question.

Restriction
on right to
prosecute.

119.—(1) The sections of the Act of 1936 mentioned in Part I of Schedule 3 to this Act shall have effect as if references therein to that Act included reference to this Act, except the provisions thereof mentioned in subsection (2) of this section.

Application of
general
enactments.

(2) The sections of the Act of 1959 mentioned in Part II of Schedule 3 to this Act shall have effect as if references therein to that Act included reference to the following provisions of this Act:—

- Section 23 (Restriction on buildings under streets);
- Section 24 (Oil pipes and manholes in streets);
- Section 26 (Licence to erect scaffolding);
- Section 27 (Excavations near highways).

PART X
—*cont.*

(3) The sections of the Act of 1936 mentioned in Part III of Schedule 3 to this Act shall have effect as if references therein to that Act included a reference to Part III (Planning and amenities), Part IV (Highways), Part V (Fire protection and public safety) and Part VI (Public health and welfare) of this Act.

**Miscellaneous
amendments
of Act of
1956.**

120. The enactments in the Act of 1956 hereinafter mentioned shall be amended as follows:—

(1) in section 119 (Hairdressers and barbers), in subsection (7), the words “ of the said byelaws and ” shall be omitted and after the word “ registration ” there shall be inserted the words “ and of any byelaws made or having effect as if made by the local authority under section 77 of the Public Health Act 1961 prominently ”;

(2) in section 121 (Boxing and wrestling licences), in subsection (8), the following maximum fees shall be substituted for the fees specified in paragraphs (a) to (d) thereof:—

in paragraph (a)—£5;

in paragraph (b)—£6;

in paragraph (c)—£1;

in paragraph (d)—10s.;

and, in paragraph (b) thereof, for the words “ ten shillings for every month ” there shall be substituted the words “ fifteen shillings for every month ”;

(3) in section 164 (Power to charge in respect of establishment expenses), for the words “ five per centum ” there shall be substituted the words “ seven per centum ”;

(4) in section 197 (Summary recovery of damages for negligence) for the words “ twenty pounds ” there shall be substituted the words “ fifty pounds ”.

Repeal.

121. The provisions of the Act of 1956 specified in column (1) of Schedule 4 to this Act shall, to the extent indicated in column (2) thereof, be repealed.

Costs of Act.

122. All the costs, charges and expenses preliminary to and of and incidental to the preparing, applying for, obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Council out of their county fund or out of moneys to be borrowed under this Act.

SCHEDULES

SCHEDULE 1

Section 100.

INCREASE OF FINES

Section of Act of 1956 (1)	Former maximum fine (2)	New maximum fine (3)
Section 20 (Prohibition of building until street defined)	£20	£100
Section 21 (Prohibition of building until street formed and sewered)	£20	£100
Section 22 (Termination of new streets)	£20	£100
Section 24 (Rounding or splaying off corners at street junctions)	£20	£100
Section 25 (Trees grass verges and gardens)	20s.	£20
Section 31 (Milk stands in highways)	£5	£20
Section 33 (Erection of structures at street corners)—		
Subsection (6)	£5	£20
Subsection (7)	£5	£20
Subsection (8)(a)	A daily fine of 20s.	£50
Section 35 (Application of building line to walls etc.)—		
Subsection (2)	£5	£20
Subsection (3)	£5	£20
Subsection (4) (a)	A daily fine of 20s.	£50
Section 37 (Retaining walls)	£5	£20
Section 41 (Awnings over footways)	40s.	£20
Section 43 (Control of dumping of coal, etc. in streets)	£5 and a daily fine of 40s.	£20 and a daily fine of £5
Section 44 (Mixing of mortar etc. in streets)	40s.	£20
Section 45 (Damage to trees etc. on highways and in open spaces)	40s.	£20
Section 49 (Maintenance of footways, etc.)	40s. and a daily fine of 20s.	£20
Section 54 (Decorations in streets) ...	£5	£20
Section 57 (Court may prohibit movable dwellings in certain areas)—		
Subsection (5) (a) and (b) ...	£10 and a daily fine of £5	£20 and a daily fine of £5
Section 94 (Means of access to buildings)	£20	£100
Section 98 (Tipping of spoil and refuse)	£50 and a daily fine of £10	£100 and a daily fine of £10
Section 100 (Discharge of steam and waste gas)	£20 and a daily fine of 40s.	£50 and a daily fine of £2
Section 101 (Silencers for internal combustion engines)	£10 and a daily fine of 40s.	£50 and a daily fine of £2
Section 110 (Prohibition of tuberculous persons from handling food)	£5 and a daily fine of 40s.	£20 and a daily fine of £5
Section 111 (Slaughter of animals otherwise than for human consumption)	£10	£50

SCH. 1
—cont.

Section of Act of 1956 (1)	Former maximum fine (2)	New maximum fine (3)
Section 112 (Animals slaughtered outside slaughter-houses)	£5	£20
Section 113 (Inedible fat)	£10 and for a second or subsequent offence £50	£50 and for a second or subsequent offence £200
Section 114 (Registration of hawkers of food and their premises)	40s. and a daily fine of 20s.	£10
Section 115 (Notification of premises for sale etc. of food)	£10	£50
Section 119 (Hairdressers and barbers)—		
Subsection (5) (a)	£20 and a daily fine of £5	£50
Subsection (5) (b)	£5	£20
Subsection (6) (a)	20s. and a daily fine of 10s.	£10 and a daily fine of £2
Subsection (7)	20s. and a daily fine of 10s.	£10 and a daily fine of £2
Section 122 (Penalties)—		
Paragraph (i)	£50 and a daily fine of £5	£200
Paragraph (ii)	£20 and a daily fine of £5	£100
Section 126 (Powers of entry and inspection)	£20	£50
Section 130 (Notice of street processions)	£5	£20
Section 131 (Sale of food and articles on verges etc.)	40s.	£10 and a daily fine of £2
Section 133 (Offences in respect of telephone boxes etc.)—		
Subsection (1)	£5	£20
Subsection (2)	£5	£50
Section 134 (Fire hydrants and alarms)	£10	£20
Section 138 (Prohibition on solicitation of school children to sell or exchange articles etc. at schools)	£5	£20

Section 102.

SCHEDULE 2

ENACTMENTS MENTIONED IN SECTION 102

1875 c. 55.	Public Health Act 1875.
1890 c. 59.	Public Health Acts Amendment Act 1890.
1907 c. 53.	Public Health Acts Amendment Act 1907.
1925 c. 71.	Public Health Act 1925.
1930 c. 44.	Land Drainage Act 1930.
1936 c. 49.	Public Health Act 1936.
1937 c. 40.	Public Health (Drainage of Trade Premises) Act 1937.

Shops Act 1950.	SCH. 2
Housing Act 1957.	—cont.
Public Health Act 1961.	1950 c. 28.
Land Drainage Act 1961.	1957 c. 56.
Town and Country Planning Act 1962.	1961 c. 64.
Housing Act 1964.	1961 c. 48.
Civic Amenities Act 1967.	1962 c. 38.
Town and Country Planning Act 1968.	1964 c. 56.
	1967 c. 69.
	1968 c. 72.

SCHEDULE 3

Section 119.

GENERAL ENACTMENTS APPLIED

PART I

SECTIONS OF ACT OF 1936 APPLIED TO THIS ACT, OTHER THAN
SECTIONS 23, 24, 26 AND 27 OF THIS ACT

Section	Marginal note
271	Interpretation of “ provide ”.
283	Notices to be in writing; forms of notices, &c.
288	Penalty for obstructing execution of Act.
296	Summary proceedings for offences.
297	Continuing offences and penalties.
304	Judges and justices not to be disqualified by liability to rates.
328	Powers of Act to be cumulative.

PART II

SECTIONS OF ACT OF 1959 APPLIED TO SECTIONS 23, 24, 26 AND 27 OF
THIS ACT

Section	Marginal note
269	Summary proceedings for offences.
270	Continuing offences.
273	Notice to be given of right of appeal.
278	Judges and justices not to be disqualified by liability to rates.
280	Notices, etc., to be in writing; forms of certain documents.
281	Authentication of documents, etc.
282	Service of notices, etc.
283	Reckoning of periods.

SCH. 3
—cont.

PART III

SECTIONS OF ACT OF 1936 APPLIED TO PARTS III, IV, V AND VI
OF THIS ACT

Section	Marginal note
275	Power of local authority to execute certain work on behalf of owners or occupiers.
276	Power of local authority to sell certain materials.
287	Power to enter premises.
289	Power to require occupier to permit works to be executed by owner.
291	Certain expenses recoverable from owners to be a charge on the premises: Power to order payment by instalments.
293	Recovery of expenses, &c.
294	Limitation of liability of certain owners.
295	Power of local authority to grant charging orders.
299	Inclusion of several sums in one complaint, &c.
1925 c. 22. 329	Saving for certain provisions of the Land Charges Act 1925.

Section 121.

SCHEDULE 4

PROVISIONS OF ACT OF 1956 REPEALED

Section (1)	Extent of repeal (2)
Section 26 (Adjustment of boundaries of streets)	The whole section.
Section 28 (Piping etc. of roadside ditches) ...	Subsections (1), (2), (5) and (6).
Section 30 (Public seats in roads)	In subsection (1) the words “and any parish council” and subsection (2).
Section 32 (Pavement lights and ventilators) ...	The whole section.
Section 36 (Crossings over footways)	The whole section.
Section 38 (Hoards to be set up during building operations)	The whole section.
Section 39 (Maintenance of forecourts to which public have access)	The whole section.
Section 40 (Forecourts injurious to amenities of street)	The whole section.
Section 46 (Urgent repairs of private streets) ...	The whole section.
Section 47 (Extension of power to contribute to expenses of private street works)	The whole section.
Section 50 (Evasion by owners of private street works expenses)	The whole section.
Section 60 (Provision of camping grounds by local authorities)	The whole section.
Section 62 (As to closing of parks, etc.) ...	The whole section.
Section 63 (Power to let parks, etc., for games)	The whole section.
Section 65 (Boating pools)	The whole section.
Section 68 (Provision of bins for litter) ...	The whole section.
Section 72 (Recovery of expenses of sewerage public highway)	The whole section.

SCH. 4
—cont.

Section (1)	Extent of repeal (2)
Section 73 (Recovery of expenses of sewerage prospective street)	The whole section.
Section 74 (Prevention of evasion of liabilities under last two foregoing sections)	The whole section.
Section 75 (Recovery of cost of maintaining public sewers)	The whole section.
Section 77 (Separate sewers for foul water and surface water)	The whole section.
Section 78 (Delegation of power to examine and test drains, etc.)	The whole section.
Section 79 (Summary power to remedy stopped-up drains, etc.)	The whole section.
Section 80 (Power to cleanse or repair drains, etc.)	The whole section.
Section 81 (Power to repair drains and private sewers)	The whole section.
Section 82 (Penalty for improper construction or repair of water-closet, etc.)	The whole section.
Section 83 (Closet accommodation for separate dwellings)	The whole section.
Section 84 (Cleansing of filthy or verminous premises)	The whole section.
Section 85 (Power to require vacation of premises during fumigation)	The whole section.
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Section 89 (Ruinous and dilapidated buildings and neglected sites)	The whole section.
Section 90 (As to deposit of rubbish)	The whole section.
Section 91 (Recovery of expenses of watching, etc., dangerous and dilapidated buildings)	The whole section.
Section 92 (Demolition of buildings)	The whole section.
Section 93 (Cellars and rooms below subsoil water level)	The whole section.
Section 95 (Further provisions as to means of escape from fire in case of certain buildings)	Subsection (1).
Section 97 (Height, etc., of new chimneys) ...	The whole section.
Section 99 (Smoke from industrial furnaces) ...	The whole section.
Section 102 (Noise nuisance)	The whole section.
Section 103 (Restrictions on use of loud-speakers in streets)	The whole section.
Section 105 (Entry into premises in case of notifiable disease)	The whole section.
Section 106 (Information to be furnished by occupier in case of notifiable disease)	The whole section.
Section 108 (Exclusion of children from places of entertainment or assembly)	The whole section.
Section 109 (Compensation for stopping employment to prevent spread of disease)	The whole section.
Section 119 (Hairdressers and barbers) ...	Subsection (4).
Section 120 (As to water supply to occupied houses)	The whole section.
Section 129 (Barriers in streets)	The whole section.
Section 135 (Interference with refuse bins, etc.)	The whole section.
Section 136 (Derelict petrol tanks)	The whole section.

SCH. 4
—cont.

Section (1)	Extent of repeal (2)
Section 137 (Byelaws as to pleasure fairs and roller-skating rinks)	The whole section.
Section 139 (Amendment of section 154 of Act of 1936)	The whole section.
Section 140 (Control of sirens, etc., used in factories, etc.)	The whole section.
Section 158 (Payment of pension, etc., of person of unsound mind)	The whole section.
Section 160 (Recovery of sums paid to officers, etc.)	The whole section.
Section 174 (Loans for erection, etc., of buildings)	The whole section.
Section 175 (Application of certain sections of Part VIII to local authorities)	In subsection (2) the words “ section 158 (Payment of pension etc. of person of unsound mind) ” and “ section 160 (Recovery of sums paid to officers etc.) ”.
Section 176 (School agreements)	The whole section.
Section 216 (Confirming authority for byelaws)	The whole section.
Section 218 (Arbitration)	The words “ Subsection (5) of section 28—The Minister of Transport and Civil Aviation ”.
Section 219 (Restriction on right to prosecute)	The words “ (except section 136 (Derelict petrol tanks) thereof) ”.
Section 221 (Application of general provisions of Act of 1936)	In subsection (3) the words “ Section 135 (Interference with refuse bins etc.) ”.
	In subsection (4) the words from “ and also ” to the end of the subsection.
Schedule 3	The whole schedule.

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Monmouthshire County Council Act 1970

CHAPTER lxxvii

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4. The appointed day.

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29. Building operations affecting public safety.
30. Exemption of owner from liability on conviction of actual offender.
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- 94. Gratuities to non-teaching staff in voluntary schools.
- 95. Recovery of sums paid to officers, etc.
- 96. Application to certain authorities of provisions of Part VIII.

PART IX

MISCELLANEOUS

- 97. As to use of computer equipment.
- 98. Microfilming of documents.
- 99. Damage by ineradicable substances.
- 100. Increase of fines.
- 101. Institution of proceedings for offences relating to certain excise duties.
- 102. Power to require information as to ownership of premises.
- 103. Power to use ladders, etc., for entry or inspection.
- 104. Numbers of houses.
- 105. Disposal of lost and uncollected property.
- 106. Disposal of unsuitable specimens.

Section

- 107. Power to lend museum objects for educational purposes.
- 108. Research into matters concerning social conditions, etc.
- 109. Power to provide car parks for certain purposes.
- 110. Provision of lectures, etc., by certain local authorities.
- 111. Application to certain authorities of provisions of Part IX.

PART X

GENERAL

- 112. Crown rights.
- 113. For protection of public utility undertakers.
- 114. For protection of the Western Valleys (Monmouthshire) Sewerage Board.
- 115. Application of provisions of Act of 1956.
- 116. Arbitration.
- 117. Liability of directors, etc.
- 118. Restriction on right to prosecute.
- 119. Application of general enactments.
- 120. Miscellaneous amendments of Act of 1956.
- 121. Repeal.
- 122. Costs of Act.

SCHEDULES:

Schedule 1—Increase of fines.

Schedule 2—Enactments mentioned in section 102.

Schedule 3—General enactments applied—

Part I—Sections of Act of 1936 applied to this Act, other than sections 23, 24, 26 and 27 of this Act.

Part II—Sections of Act of 1959 applied to sections 23, 24, 26 and 27 of this Act.

Part III—Sections of Act of 1936 applied to Parts III, IV, V and VI of this Act.

Schedule 4—Provisions of Act of 1956 repealed.